PART E
SITE DEVELOPMENT AND MANAGEMENT

Providing appropriate services and facilities with equity and safety

Revision: Amendment 8 (November 2025)



Contents

Part E1	Services		357
E1.1.	**Requirements for all Development**		**360**
E1.2.	**Wastewater**		**362**
E1.3.	**Telecommunications**		**366**
E1.4.	**Water Supply**		**368**
E1.5.	**Electricity supply**		**369**
E1.6.	**Private Service extensions**		**370**
Part E2	Traffic, Parking And Access		371
E2.1.	**Traffic, Parking and Access Objectives**		**374**
E2.2.	**Parking**		**375**
	E2.2.1.	Traffic and Parking Studies	375
	E2.2.2.	Vehicle Parking Rates	376
	E2.2.3.	Parking location and design	383
	E2.2.4.	Parking requirements for accessible spaces	385
	E2.2.5.	Service and Delivery Vehicles	385
	E2.2.6.	Bicycle parking	386
E2.3.	**Access**		**388**
	E2.3.1.	Public roads	388
	E2.3.2.	Unformed public roads	389
	E2.3.3.	Driveways	390
	E2.3.4.	Pedestrian access	392
	E2.3.5.	Bicycle access	392
E2.4.	**Travel Plan**		**394**
Part E3	Accessibility, Adaptability And Housing Choice		395
E3.1.	**Accessibility**		**398**
E3.2.	**Adaptability**		**400**
E3.3.	**Housing Choice**		**401**

Part E4 Site Management 403

E4.1. Protecting amenity 406

E4.2. Site disturbance 408

E4.3. Erosion and sediment control 409

E4.4. Exclusion zones and tree protection during construction 411

E4.5. Demolition management 413

E4.6. Decommissioning sewage systems 414

E4.7. Asbestos 415

Part E5 Safety And Security 417

E5.1. Crime minimisation 420

E5.1.1. General provisions for all development 421

E5.1.2. Additional provisions for Multi-dwelling housing, Commercial, Industrial and Mixed-use developments 422

E5.2. Social Impacts 425

E5.3. Design of food premises 427

E5.4. Fire safety in buildings 429

Part E6 Waste Management 433

E6.1. Waste Management Objectives 436

E6.2. Waste Management Plan 437

E6.3. Demolition and construction waste 438

E6.4. Operational waste management 440

E6.4.1. Low density residential development 440

E6.4.2. Multi dwelling housing 441

E6.4.3. Residential Flat Buildings 443

E6.4.4. Industrial and Commercial 446

E6.4.5. Mixed Use Developments 449

Part E7 Contamination 451

E7.1. Relationship to other Legislation 454

E7.2. Contamination investigation 455

E7.3. Obtaining contamination information 457

E7.4. Independent auditing 458

Part E8 Public Domain 459

E8.1. Street Hierarchy 462

E8.1.1. Great Western Highway 463

E8.1.2. Scenic Drives 465

E8.1.3. Town & Village Centre Main Streets 467

E8.1.4. Town Centre Laneways & Through-Site Links 469

E8.1.5. Residential Footpaths 471

E8.2. Improving the Public Domain in Town Centres 472

E8.2.1. Footpath Awnings & Balconies 472

E8.2.2. Street Trees 474

E8.2.3. Street Furniture 475

E8.3. Cycling Networks 477

PART EI
SERVICES



Introduction

Blue Mountains Local Environmental Plan 2015 (LEP 2015) requires that consent is not to be granted to development unless the consent authority is satisfied that a range of services essential for the development are available or that adequate arrangements have been made to make them available when required.

The early consideration of the servicing requirements of a proposal is critical in the design and delivery of good development. The location and capacity of existing services, specific requirements of service authorities, and the location of proposed new infrastructure (such as service main extensions, pumping stations, onsite wastewater disposal systems, hydrant booster valves, electricity substations and the like) can affect the siting and design of the development.

Note: It is recommended that applicants consult with the relevant service authority at the initial stages of the concept planning for a development.

Read in conjunction with:



Submission requirements:

All development:

- *A plan showing the location of existing and proposed services, connection points, easements, clearances and access ways.*

For development including Onsite wastewater disposal:

- *A Water Cycle Management Study*

For development including a Pumpout system:

- *Site and Soil Assessment Report*

E1.1. Requirements for all Development

Explanation

The provision of adequate services is essential for all development. Consideration of servicing requirements at an early stage is important to ensure the requirements of service providers are incorporated into proposed design, and that the potential environmental and visual impact of the provision of services and service extensions are adequately considered.

The following objectives and controls apply to all development where the provision of services or service extensions is required.

Objectives

O1. To ensure that services that are essential to a development are made available to that development.

O2. To identify new infrastructure and service requirements at an early stage of the development planning process.

O3. To ensure utilities are integrated in the site planning and design of the development.

O4. To ensure the provision of service main extensions and amplifications are fully understood such that their impacts can be assessed as part of the development application assessment process.

O5. To minimise the environmental impact of the provision of services for a development.

O6. To minimise the risk of service outages in extreme natural events.

O7. To protect and improve the visual amenity of the street frontage of development.

O8. To ensure the location and siting of service infrastructure does not impact on pedestrian, cyclist and vehicle safety.

O9. To enable private connections to service mains with minimal impact on existing road infrastructure.

Controls

C1. Extension of service mains through environmentally sensitive land is to be avoided where practicable.

C2. Service main extensions or relocations are to be installed underground.

C3. All private service connections to the service mains are to be made within the development site or within the road frontage of the site.

Note: In exceptional circumstances, private service connections may be made beyond the site's road frontage with Council approval.

C4. Proposals that encroach into an easement will require the approval of the relevant authority prior to the issue of any development consent.

C5. Provision of services to development on bush fire prone land is to comply with the requirements of the NSW Rural Fire Service Planning for Bush Fire Protection.

C6. In the case of full width road construction, service conduits are to be installed across the carriageway to enable properties on the side of the road opposite to the service mains to make future service connections, with minimal impact on the road infrastructure.

Note: A road opening permit under the Roads Act 1993 is required to be obtained from the Council prior to any excavation within the road reserve for service connections.

E1.2. Wastewater

Explanation

There are a number of factors which can contribute to the degradation of the quality of groundwater, watercourses and associated ecosystems. A primary source is wastewater pollution, which includes both 'grey' water (such as discharge from laundries, kitchens and showers etc.) and 'black' water (effluent). Good wastewater management practices are central to both ecosystem function and public health.

Wastewater management and treatment may be carried out via a direct connection to the Sydney Water reticulated sewer system, by onsite disposal or by a commercial pumpout service.

For areas within the Sydney drinking water catchment, onsite wastewater management must demonstrate a neutral or beneficial effect on water quality.

For further information on development in the drinking water catchment under State Environmental Planning Policy (Biodiveristy and Conservation) 2021 and the relevant WaterNSW guidelines and standards, applicants should refer to the WaterNSW website at www.waternsw.com.au.

Controls

C1. Sewer main extensions, private sewer lines, pumpout systems and onsite wastewater disposal systems are not to be located within environmentally sensitive land or a mapped Flood Planning Area, unless no alternative is available.

C2. The development application is to detail the manner in which effluent disposal is proposed to be achieved, including the route of any proposed sewer main extensions, pumping stations and onsite disposal systems.

C3. All tanks used for storage or treatment of wastewater shall be located:

(a) so as not to interfere with any structural elements of buildings, and

(b) with a minimum setback of 3m from property boundaries, and

(c) to be a minimum of 3m from the dwellings.

Note: The treatment and reuse of grey water for laundry purposes and toilet flushing is encouraged on all properties.

Reticulated sewer connections

C4. Where a development site is within 75m of a Sydney Water sewer main, the sewer main is to be extended to the development site and the effluent disposal from the development is to be connected to that sewer system.

C5. Developments are to connect to the sewer main either within the development site or within the public road frontage of the site.

Onsite wastewater disposal systems

C6. Onsite disposal systems are to be designed to prevent:

(a) degradation of soils and native vegetation, and

(b) loss of amenity, and

(c) risk to public health, and

(d) pollution of surface and/or ground water.

C7. Onsite wastewater disposal systems must be wholly contained within the boundaries of the site.

C8. Onsite wastewater disposal systems may only be located on sites that have at least 4,000m^2 of land that is not identified as being environmentally sensitive land. Onsite wastewater disposal systems may be located on sites that have less than 4,000m^2 of land that is not identified as being environmentally sensitive land only in exceptional circumstances.

C9. Developments that propose onsite wastewater disposal systems are to be supported by a Water Cycle Management Study prepared in accordance with the Water NSW current recommended practice in *Designing and Installing Onsite Wastewater Systems, the Environmental Health Protection Guidelines On-site Sewage Management for Single Households* (the Silver Book), and AS1547.

C10. The Water Cycle Management Study is to be prepared by a suitably qualified consultant, and is to determine whether the site is capable of sustainably managing treated wastewater generated from the development on the property without causing any unacceptable health or pollution risks.

Note: Further information regarding choosing a consultant can be obtained from the WaterNSW publication titled Using a Consultant to Prepare Your Water Cycle Management Study which is available via the Water NSW website.

C11. The *Water Cycle Management Study* is to include information, reports and modelling appropriate to the type of development and the risks the development poses to water quality. Higher risk proposals require more in-depth studies. The water cycle management study is to include the following:

(a) the specific details of the proposed wastewater treatment and effluent disposal system being applied for, including the proposed site of the effluent management area, and

(b) the adequacy of the proposed system for the frequency of use, availability of power, slope, soils, and

(c) a site analysis plan showing the location of the proposed wastewater treatment system and effluent management area in relation to site boundaries, proposed and existing buildings and environmentally sensitive land, and

(d) a water balance report that identifies the volume of water utilised and wastewater generated by the development.

C12. All systems are to be designed for the maximum potential occupancy of the premises. For the purposes of calculating the maximum potential occupancy, rooms that have the potential to be a bedroom, such as studies and the like, are to be considered bedrooms.

C13. All systems and facilities that serve an equivalent occupancy of ten or more people must be installed and/or constructed to a design or plan that is the subject of a current certificate of accreditation from the Secretary of the Ministry of Health.

C14. Suitably sized flow balancing tanks are required at all premises which might be occasionally occupied by greater than ten people to ensure that the effluent can be treated and distributed more evenly following peak usage periods.

C15. Where a premises is likely to be intermittently occupied, Aerated Wastewater Treatment Systems (AWTS) are not suitable as they require a continuous power source. Infrequent or irregular use of these systems is likely to result in adverse environmental impacts due to discharge of untreated or poorly-treated effluent.

C16. Surface irrigation is not permitted and subsurface drip irrigation is to be utilised instead.

C17. The hydraulic design of irrigation systems is to be in accordance with the WaterNSW current recommended practice Designing and Installing Onsite Wastewater Systems and undertaken by a suitably qualified and experienced consultant.

Pump out systems

C18. New and replacement pumpout systems will only be considered in relation to a dwelling-house and only in circumstances where a Site and Soil Assessment Report prepared in accordance with AS1547 justifies to the Council's satisfaction that this is the only option available.

C19. Pumpout systems are to be designed so as to:

(a) locate the septic tanks and collection wells together, and

(b) ensure tanks and collection wells are at least 3m from buildings and boundaries, and

(c) locate tank lids above ground level to avoid surface water from entering the tank, and

(d) ensure that any decking or any other structures are not erected over the tanks unless there is a means of access to the septic tank and collection well, and

(e) use plastic tanks only where it is impractical to use concrete tanks because of access and delivery constraints, and

(f) concrete the tanks into the ground and key them together to avoid differential movement and pipe breakage, and

(g) ensure the holding or collection well has the capacity to accommodate a minimum of 7 days' daily flow for a weekly pumpout service, and

(h) include a suction line that is to be 50mm in diameter, Class 12 pressure pipe, with the last 1.5m to the property boundary and the upstand being 50mm galvanised iron pipe. The upstand and elbow is to be concreted to the ground to prevent movement and damage when the pump is operational, and

(i) provide an all-weather access and parking at the pumpout line for pumpout tankers.

E1.3. Telecommunications

Explanation

Telecommunication systems are now considered a basic service and include the hard line services as well wireless devices and their associated infrastructure. Consideration about how and where these services are installed can limit the potential impacts on the environmental, health, character and amenity values of an area.

Controls

Service lines

C1. Where development requires the construction of new public or private road or construction of any unformed road, all telecommunication main extensions are to be installed underground.

Receivers

C2. Telecommunication receivers (including antennae or dishes) are to be integrated with the design and appearance of any building or structure on or within which it is located.

C3. Telecommunications receivers are to be located so as to avoid obstruction of views to and from significant landmarks or heritage items.

C4. Multi-dwelling house development should preferably include the provision of a centralised receiver system rather than individual antennae or dishes on each residence.

Note: Refer to Part D – Heritage Management for further controls on receivers on heritage properties.

Telecommunication facilities

C5. Applications for telecommunications facilities are to demonstrate that the facility:

(a) cannot satisfactorily be located on an existing telecommunications tower; and

(b) contributes toward meeting the current and future telecommunications servicing needs of the locality (including future servicing needs of newly developed areas); and

(c) where proposed within a precinct (link to map), complements or enhances, and be visually integrated with, the character and streetscape of the surrounding area; and

(d) incorporates effective measures to avoid or mitigate damage to vegetation, threatened species and critical habitats.

C6. Telecommunications towers are to be located so that they, and any necessary maintenance access, do not adversely impact on any environmentally sensitive land.

C7. Telecommunications facilities are to be designed, installed and operated to comply with standards relating to human exposure to electromagnetic energy (EME) appearing in any applicable code or standard made under the applicable state or federal legislation.

C8. Telecommunications facilities are to be designed to minimise public exposure to EME through the principle of prudent avoidance, whereby low or no cost measures are employed to avoid or reduce exposures.

C9. Applications for telecommunications facilities are to be supported by a report by a suitably qualified consultant that addresses the impacts of the facility and its compliance with the Australian Radiation Protection and Nuclear Agency (ARPANSA) Radiation Protection Standard for Maximum Exposure Levels to Radio Frequency Fields. The report is to estimate the likely population exposure within a reasonable area around the site, including estimates of highest public exposure. Procedures for making these estimates should follow the protocol developed by ARPANSA.

E1.4. Water Supply

Explanation

A reliable water supply is necessary for most development to provide for drinking, washing, irrigation and firefighting. The supply is generally provided from Sydney Water's reticulated water main system, however it may also be provided by onsite rain water tanks, as well as drawing from dams, watercourses, bores and wells.

Controls

C1. The method of water supply proposed, the route of any proposed water main extensions, and the location of any proposed static water supplies, is to be detailed as part of the development application.

C2. Where the development solely relies upon a static water supply, the rainwater tank is to have a minimum capacity of 30,000L separate to any volume required for bushfire fighting.

C3. For developments other than single dwellings or dual occupancies, the development application is to detail the location of any proposed fire hydrants and booster valves.

E1.5. Electricity supply

Explanation

A reliable electricity supply is necessary for most development. That supply is generally provided from the service provider's electricity mains; however it may also be provided or supplemented by onsite generation from solar panels or wind turbines.

Controls

C1. The method by which an electricity supply will be provided to a development, including the route of any proposed electricity main extensions, and the location of any proposed substations and their related easements and clearances, is to be provided as part of the development application.

C2. Where development requires the construction of any unformed road reserve or results in new public or private road construction, all service main extensions are to be installed underground.

C3. Where development necessitates the replacement or relocation of existing aerial mains, they are to be replaced with aerial bundled cable or relocated underground.

C4. On sites mapped as bushfire prone land and where the development necessitates the replacement of existing timber power poles, these poles are to be replaced with concrete poles.

C5. Power generators are to be located so as to minimise their visual and amenity impacts on the streetscape and neighbouring properties.

E1.6. Private Service extensions

Explanation

In some circumstances, service mains are not available to properties within their boundaries or within the road fronting the site. Where these properties require service connections, the Council will normally require the service mains to be extended to the property or its road frontage. In some exceptional circumstances, the Council may consider the installation of private service extensions within the road reserve to make connections to the service mains remotely from the property.

Objectives

O1. To enable connection to services where extensions of service mains to the development site are impractical.

Controls

C1. The Council may consider applications to install private service lines within Council's road reserve where:

(a) it is not feasible or practical for the individual to extend the service provider's main to the property, and

(b) the property is within 150m of the relevant service authority's main to which it is proposed to connect, and

(c) there are a maximum of 4 properties that need, or potentially need, to install private service lines within that section of road reserve.

PART E2
TRAFFIC, PARKING AND ACCESS



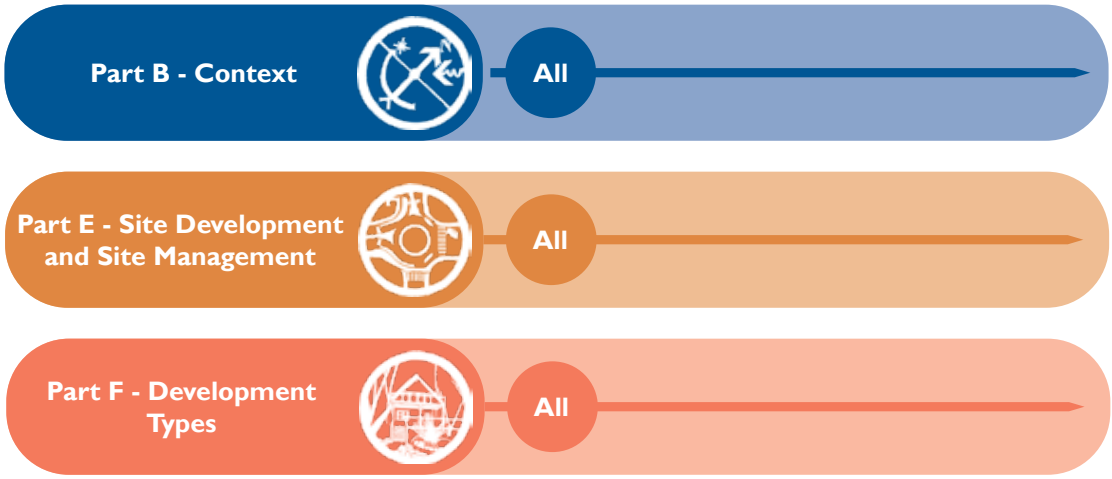
Introduction

Vehicle, pedestrian and cycle access, circulation and parking are crucial ingredients in good design of neighbourhoods and villages. Transport related design elements and traffic impacts need to be considered in all development to ensure a safe environment and to reduce the environmental, social and economic impacts.

Traffic, parking and access relate primarily to the road and pedestrian networks, driveway and parking areas, and issues associated with traffic and connectivity. This part of the DCP recognises that land use and development can result in parking demands, traffic generation and road safety impacts, as well as impacts on road hierarchies.

These issues are inter-related and need to be dealt with in a holistic manner. Additionally, these aspects of the development can influence and impact upon site planning, design and built form, infrastructure and servicing, streetscape and public domain areas.

Read in conjunction with:



Submission requirements:

One or more of the following types of reports may need to accompany a development application:

- *A Parking and Traffic Report or a Traffic Impact Study.*
- *Preliminary Construction Traffic Management Plan*

Relationship to other legislation and documents :

- *Australian Standards (AS)*
  - » *AS1158.3 Lighting for roads and public areas*
  - » *AS 1428 Design for access and mobility*
  - » *AS1680.2.1 Interior and workplace lighting - Specific applications – Circulation spaces and other general areas*
  - » *AS 2890 Parking facilities series (including AS2890.3 Bicycle parking facilities)*
  - » *AS 4299 Adaptable Housing*
- *State Environmental Planning Policy (Transport and Infrastructure) 2021*
- *RMS Guide to Traffic Generating Developments 2002*
- *Austroads guides*
- *Blue Mountains City Council Design and Construction Specification*
- *Blue Mountains City Council Public Domain Technical Manual*
- *NSW Planning Guidelines for Walking and Cycling*
- *Blue Mountains Bike Plan 2020*

E2.1. Traffic, Parking and Access Objectives

O1. To ensure that the traffic and parking impacts of a proposed development are appropriately understood, considered and addressed.

O2. To ensure that an appropriate level of off-street parking and loading facilities are provided in a manner which is safe, convenient, functional and accessible.

O3. To ensure car parking facilities, service and delivery areas, access and public road infrastructure are designed to minimise adverse impact on the environment, heritage and streetscape character.

O4. To ensure that access paths and driveways are integrated into the development design, with minimal impact on road systems and minimal loss of existing on-street parking.

O5. To ensure the provision of car parking complements the broader transport network.

O6. To minimise the adverse impacts of increased vehicle, pedestrian and cycle traffic and parking on the community and the Council's infrastructure.

O7. To ensure that any public infrastructure created by a development is of a suitable standard that does not result in an ongoing maintenance burden for the community and the Council.

O8. To ensure that each property has a stable and safe vehicle access from a public road.

O9. To provide a safe, convenient and legible movement network for people with diverse abilities (including those using wheelchairs, mobility scooters, people with prams, small children elderly people and people with temporary injuries), between residences and points of attraction within and beyond development.

O10. To provide walking routes along predictable pathways of travel, including approaches to schools, parks and shopping precincts.

O11. To encourage cycling as a regular form of transport through the provision of secure, convenient and accessible bicycle routes and parking.

O12. To ensure that new bicycle paths are to be consistent with the objectives of the Blue Mountains Bike Plan 2020.

O13. To encourage and support the use of electric vehicles.

E2.2. Parking

Explanation

This part provides vehicle parking rates, as well as design and location requirements for car parking areas within development sites. The provision of adequate onsite parking as part of a development is important to ensure that new land uses do not result in increased street parking or adverse impacts on local road networks. Appropriate location and design of car parking areas can contribute to improved manoeuvrability within the site, and minimise adverse impacts on the streetscape.

This part also details the level of information required to be submitted in different development scenarios, such that traffic demand generated by the development can be assessed and managed.

Note: The provision of a percentage of small car spaces, compliant with the requirements of AS2890.1, with ready access to facilities is encouraged in new commercial developments.

E2.2.1. Traffic and Parking Studies

Controls

C1. All development, other than single dwellings, which will result in an increase in parking demand is to identify:

(a) the parking need generated by the development in accordance with the rates included in Part E2.2.2 of this DCP, and

(b) the proposed parking provisions within the development site.

C2. Where all parking generated by the development cannot be accommodated onsite, justification as to how parking demand can be managed without adverse impacts on the locality is to be provided.

C3. Where there are multiple land uses incorporated into the development, the parking generation is to be calculated separately for all defined land uses.

C4. A Parking and Traffic Report is required for all development, other than a single dwellings, where it:

(a) is considered by the Council to have more than a minor impact on the parking and traffic within the locality, or

(b) proposes vehicle access directly to the site from a classified or collector road, or

(c) is located in areas of high pedestrian and vehicle traffic, and where on street parking availability is limited at peak generation times for the development.

C5. A Traffic Impact Study is required for all development that results in a traffic generation of more than 50 peak hour trips, and those developments listed in Schedule 3 of *State Environmental Planning Policy (Transport and Infrastructure) 2021* (SEPP Infrastructure).

Note: Council is required under SEPP Infrastructure to refer to Transport for NSW (TfNSW) certain development applications. The types of development are listed in the SEPP.

In certain circumstances Council may also refer additional development applications to the Development, Local or Regional Traffic Committees for their review and comment.

Preliminary Construction Traffic Management Plan

C6. A Preliminary Construction Traffic Management Plan is to be submitted with applications for development that includes substantial demolition and/or construction on sites adjoining classified or collector roads, areas of high pedestrian and vehicle traffic, within Town Centres, adjacent to transport nodes or on difficult sites.

E2.2.2. Vehicle Parking Rates

Explanation

The vehicle parking rates apply to all new development, alterations and additions to existing development and proposals for change of use. The provision of bicycle, motor cycle or scooter parking in addition to the car parking provisions is encouraged to promote these modes as viable, energy efficient transport options.

Controls

C1. Vehicle parking is to be provided in accordance with the parking rates in *Part E2 - Table 1*.

Note: The *Community Infrastructure Contributions Plan for Lawson Town Centre* applies to land within the Lawson Town Centre Precinct. The plan contains provisions for parking credits on certain land fronting the Great Western Highway. The plan can be accessed via Council's website.

C2. Where a land use is not listed or no parking rate is specified in *Part E2 - Table 1*, the required parking provision will be based on a merit assessment, or where specified, a parking and traffic report or traffic impact study. In these cases, the applicant is to estimate the rate based on a comparison with operating development of a similar type and scale, or on rates listed in the RMS Guide to Traffic Generating Developments.

C3. Parking calculations are to be rounded down to the nearest whole number.

C4. Any excess provision of parking over the required rate, will be included in gross floor area calculations.

C5. Parking for service/delivery vehicles, bicycles and people with a disability need to be considered for the relevant land use and in accordance with this DCP.

C6. Where development comprises an extension, modification or change of use, Council will generally only require additional parking be provided to cater for the parking demand generated by that extension, modification or change of use.

C7. Where a proposal includes demolition and rebuilding, the parking generation is to be based upon the total proposed development less any parking credit for an existing lawful use on the site, in accordance with the parking rates in Part E2 – Table 1.

Part E2 - Table 1: Vehicle Parking Rates

Land use	Proposed
Agriculture	
Animal boarding or training establishments	1 space per employee present at any one time, plus 1 visitor/client space
Horticulture	Merit based assessment
Residential accommodation	
Attached dwellings	1 space per dwelling
Boarding houses	1 space per 3 beds, plus 1 space per 3 employees present at any one time
Dual occupancies (attached)	1 space per dwelling with a GFA of less than 125m^2. 2 spaces per dwelling with a GFA equal to or greater than 125m^2. Where the development proposes a change of use from a single dwelling to a dual occupancy, additional parking is not required for the existing dwelling.

Dual occupancies (detached)	1 space per dwelling with a GFA of less than 125m^2 2 spaces per dwelling with a GFA equal to or greater than 125m^2 Where the development proposes a change of use from a single dwelling to a dual occupancy, additional parking is not required for the existing dwelling.
Dwelling houses	1 space per dwelling
Group homes (permanent)	In accordance with the requirements of *SEPP (Housing) 2021*
Group homes (transitional)	
Home-based child care	1 space per practitioner, plus 1 visitor space
Hostels	1 space per 3 beds plus 1 space per 3 employees present at any one time
Multi-dwelling housing	1 space per dwelling with a GFA of less than 125m^2 2 spaces per dwelling with a GFA of equal to or greater than 125m^2 1 visitor space per 5 dwellings
Residential flat buildings	1 space per dwelling plus 1 visitor space per 5 dwellings
Rural worker's dwelling	1 space per dwelling
Semi-detached dwellings	1 space per dwelling with a GFA of less than 125m^2 2 spaces per dwelling with a GFA of equal to or greater than 125m^2
Seniors housing (self contained)	0.5 space per bedroom of dwelling Social housing provider concession: 1 space for each 5 dwellings
Seniors Housing (Residential care facilities)	1 space per 10 beds (or 1 space per 15 beds for dementia facilities) 1 space per 2 employees on duty at any one time, plus an ambulance space
Shop top housing	0.5 spaces per dwelling
Tourist and visitor accommodation	
Backpackers' accommodation	1 space per 4 beds plus 1 space per 3 employees
Bed & breakfast accommodation	1 space per proprietor, plus 1 space per guest room
Camping grounds	Parking and traffic report
Caravan parks	Parking and traffic report
Eco-tourist facilities	1 space per proprietor plus 1 space per accommodation suite
Farm stay accommodation	1 space per proprietor plus 1 space per guest room

Hotel or Motel Accommodation	*Hotel* 1 space per 5m2 of public/licensed area plus 2 spaces per 3 employees on duty at any one time plus 2 spaces per 3 guestrooms plus the applicable parking provision for any additional use incorporated into the development *Motel* 1 space per unit plus 2 spaces per 3 employees on duty at any one time plus the applicable parking provision for any additional use incorporated into the development
Serviced apartments	1 space per accommodation suite plus 2 spaces per 3 employees present at any one time
Commercial premises	
Amusement centres	1 space per 25m^2 GFA
Bulky goods premises	1 space per 45m^2 GFA
Business premises	1 space per 40m^2 GFA
Cellar door premises	1 space per 40m^2 GFA
Entertainment facility	1 space per 4 seats or 1 space per 10m^2 GFA whichever is the greater
Food & drink premises	See pubs, restaurants or cafés, take-away food & drink premises
Function centres	1 space per 20m^2 GFA
Funeral homes	1 space per 40m^2 GFA
Garden centres	0.5 spaces per 100m^2 of the site area used for display of plants & associated products plus 1 space per 40m2 for associated ancillary uses
Hardware & building supplies	1 space per 40m^2 of GFA
Industrial retail outlets	1 space per 40m^2
Kiosks	1 space
Landscaping material supplies	0.5 spaces per 100m^2 of the site area used for display of plants & associated products plus 1 space per 40m2 for associated ancillary uses
Neighbourhood shops	1 space per employee on duty at any one time Where adequate on-street parking is not available, additional parking may be required on-site to minimise the impact on the existing road network Or 1 space per 25m^2 GFA with a maximum of 2 spaces being a shared area for loading/deliveries and staff parking
Office premises	1 space per 40m^2 GFA
Plant nurseries	0.5 spaces per 100m^2 of the site area used for display of plants & associated products plus 1 space per 40m^2 for associated ancillary uses

Pubs	1 space per 5m² of public/licensed area, plus the applicable parking provision for any additional use incorporated into the development
Registered clubs	1 space per 5m² of public/licensed area, plus 2 spaces per 3 employees on duty at any one time. plus the applicable parking provision for any additional use incorporated into the development Parking provisions for bowling greens are subject to a Parking and Traffic Report
Restaurants or cafés	15 spaces per 100m² GFA
Restricted premises	1 space per 25m² GFA
Rural supplies	1 space per 45m² GFA
Service stations	6 spaces per work bay plus 1 space per 20m² of GFA for a convenience store component plus the applicable parking provision for any additional use incorporated into the development.
Sex services premises	1 space per 40m² GFA
Shops	1 space per 25m² GFA
Take-away food and drink outlets	1 space per 25m² GFA
Timber yards	1 space per 40m² GFA
Vehicle sales and hire premises	1 space per 150m² of display area plus 1 space per 40m² of office area plus parking in accordance with vehicle repair station for any work bays
Veterinary hospitals	3 spaces per consulting room
Wholesale supplies	Parking and Traffic Report
Rural industries	
	Merit based assessment
Industries	
General industries	1 space per 80m² of GFA, plus 1 space per 40m² GFA for ancillary office space. Any retail component associated with the industry shall provide parking at the rate applicable for retail premises
High technology industries	1 space per 80m² GFA plus 1 space per 40m² GFA for ancillary office space. Any retail component associated with the industry shall provide parking at the rate applicable for retail premises plus the applicable parking provision for any additional use incorporated into the development
Home industry	1 space per practitioner plus 1 space for visitors

Light industries	1 space per 80m² GFA, plus 1 space per 40m² GFA ancillary office space. Any retail component associated with the industry shall provide parking at the rate applicable for shops. plus the applicable parking provision for any additional use incorporated into the development
Vehicle body repair workshops	6 spaces per work bay plus 1 space per 40m² of sales and office area
Vehicle repair stations	6 spaces per work bay plus 1 space per 40m² of sales and office area
Heavy industrial storage establishments	
Liquid fuel depots	Parking and Traffic Report
Storage premises	
Depots	1 space per employee present at any one time plus 1 visitor/ client space
Self storage units	1 space per 40m² of office/administration area floor space, plus 1 space per 300m² storage area
Warehouse or distribution centres	1 space per 300m² GFA
Waste or resource management facilities	
Resource recovery facilities	1 space per 80m² display area plus 1 space per 40m² ancillary office space
Waste disposal facilities	Traffic Impact Study
Waste or resource transfer stations	Traffic Impact Study
Land Use terms relating to infrastructure	
Passenger transport facilities	Merit based assessment
Transport depots	Traffic Impact Study
Truck depots	Traffic Impact Study
Educational establishments	
School	2 spaces per 3 employees, plus 1 space per 10 students over 17 years old.
Tertiary Institution	2 spaces per 3 employees, plus 1 space per 5 students Provision is to be made for buses. A temporary standing area suitable for dropping off and collecting students is to be designed so that vehicles can enter and leave the site in a forward direction

Land Use terms relating to community infrastructure	
Child care centres	1 space per 4 children in care, plus 1 space per 20 children in care for staff parking (Check staff requirements per child) Provision of suitable standing area for dropping off and collecting children, designed so vehicles can enter and leave the site in a forward direction
Community facilities	1 space per 20m^2 of GFA
Emergency services facilities	Parking and Traffic Report
Industrial training facilities	Parking and Traffic Report
Information and education facilities	1 space per 25m^2 GFA
Places of public worship	1 space per 4 seats or 1 space per10m^2 GFA, whichever is greater
Public administration buildings	1 space per 40m^2 GFA
Research stations	1 space per 2 employees present at any one time
Respite day care centres	1 space per 2 clients, with 50% of spaces allocated for staff parking
Health services facilities	
Health consulting rooms	3 spaces per maximum number of consulting rooms occupied at any one time, plus an ambulance space
Hospitals	Traffic Impact Study
Medical centres	3 spaces per maximum number of consulting rooms occupied at any one time, plus an ambulance space
Land Use terms relating to recreation	
Environmental facility	Traffic Impact Study
Recreation facilities (indoors)	1 space per 40m^2
Recreation facilities (major)	Sports stadium: 1 space per 5m2 GFA or 1 space per 6 seats, whichever is greater
Recreation facilities (outdoor)	Traffic Impact Study
Miscellaneous Land Use terms	
Exhibition homes	1 space per 40m^2 of office/sales area floor space. A minimum of 2 spaces to be provided
Mortuaries	1 space per 40m^2 GFA

E2.2.3. Parking location and design

Explanation

Parking area location and design needs to be carefully considered to ensure pedestrian safety, clear sight lines and to maintain streetscape character and amenity.

The specific requirements for parking layout, dimensions, design and construction (for parking spaces, aisles, disabled, grades, line marking, sign posting, wheel stops etc.) are provided in the relevant Australian Standard and the RMS Guidelines. All development needs to comply with these standards as a minimum level of provision to ensure car parking facilities are efficient, adequate and safe.

Controls

C1. Unless otherwise stated, the car parking location and design is to comply with the relevant Australian Standard and the RMS Guidelines for layout, dimensions, aisle widths, grades, access requirements for different uses & users (e.g. those with disabilities), driveway widths, service and delivery needs.

C2. In all developments, other than single dwellings, dual occupancies, secondary dwellings, holiday lets and bed and breakfast accommodation, the parking area is to be designed such that all vehicles can enter and exit the site in a forward direction. On classified roads, in high pedestrian and vehicle traffic areas, or areas with poor sight distance, the car parking design for single dwellings, dual occupancies, holiday lets and bed and breakfast accommodation may also be required to accommodate forward entry and exiting of vehicles.

C3. Circulation routes are to be logical, intuitive and generally in a clockwise direction.

C4. All car parking spaces and aisles are to be appropriately line marked and sign posted.

C5. On constrained sites, the Council may consider the use of stacked spaces for staff parking only.

C6. On large developments or where there is restricted sight distance for exiting vehicles, exits from car parking areas are to be controlled with Stop signs, linemarking and a speed hump.

C7. Motor cycle parking spaces are to be a minimum of 1.2m wide by 2.5m long and clearly marked.

C8. Motor cycle spaces are to be designed and located so they are not vulnerable to being struck by manoeuvring vehicles.

C9. Motor cycle spaces must be located on flat and even surfaces as they rely on side-stands to park.

C10. Lighting of car parking areas is to be in accordance with AS1158.3 Lighting for roads and public areas and AS1680.2.1 Interior and workplace lighting - Specific applications – Circulation spaces and other general areas.

Note: The Council will provide the design brief in cases where the lighting is to become a Council asset.

C11. Car parking for multi-dwelling housings, residential flat buildings, seniors housing (self-contained) and boarding houses (consisting of 3+ rooms) development is to:

(a) Provide at least one EV ready connection for each dwelling (or room in the case of a boarding house) that is allocated a car parking space.

(b) Provide EV distribution board(s) of sufficient size to allow connection of all EV ready connections.

(c) Provide access to an on-premises shared EV connection for all car share spaces and visitor spaces.

C12. Car parking for new commercial premises is to provide one shared EV connection for every 10 car spaces distributed throughout the carpark to provide equitable access across floors and floor plates, and across open parking areas.

C13. EV connections provided for low density residential development should be located in a garage.

Where no garage is proposed, EV connections, and associated structures, should be located behind the building line to minimise visual impact on the streetscape.

C14. All EV charging infrastructure is to comply with the applicable Electric Vehicle safety and energy consumption data collection requirements of the National Construction Code.

E2.2.4. Parking requirements for accessible spaces

Explanation

The Federal Government's Disability Discrimination Act 1992 (DDA) sets the framework for ensuring that people with a disability have the same rights to equality before the law as the rest of the community and are not discriminated against in areas such as housing, education, employment, access and provision of goods and services. The National Construction Code (NCC) and Disability (Access to Premises—Buildings) Standards establish the access requirements and rates for car parking for people with a disability.

This part of the DCP should be read in conjunction with Part E3 Accessibility, Adaptability and Housing Choice.

Controls

C1. All development must provide accessible car parking for people with a disability as set out in the NCC and the relevant Australian Standard (AS).

C2. The dimensions for car spaces including headroom and access requirements for people with a disability are to comply with AS 2890.6.

E2.2.5. Service and Delivery Vehicles

Explanation

The provision of appropriate and safe service and delivery vehicle access and onsite parking is essential for effective development, and to minimise conflicts with pedestrians and other vehicles.

Controls

C1. Service and delivery vehicle parking spaces are to be provided onsite.

C2. Service vehicle dimensions, layout and service/loading bays are to comply with Australian Standard AS 2890.2 Off street commercial vehicle facilities.

C3. Where a site has rear lane access, the service and delivery vehicle access is to be provided from that lane, unless it can be demonstrated that this location is inadequate for the purpose.

C4. Service vehicle parking and manoeuvring areas are to be separated from car parking and pedestrian access routes.

Note: Variations, such as shared spaces, can be considered where service vehicles can be appropriately managed to occur outside operating hours.

E2.2.6. Bicycle parking

Explanation

Healthy, vibrant and sustainable cities support alternative modes of transport such as bicycles and the provision of suitable infrastructure for safe cycleways. Consistent with this has been the development of the *Blue Mountains Bike Plan 2020*, an infrastructure and operational plan which identifies the need for safe and accessible pathways of travel that encourage the use of bicycles for everyday transportation and enjoyment.

Major activity nodes, such as town centres, shopping precincts, transport nodes, civic buildings, tourist facilities and lookouts generate demand for non-car transport. Through improved facilities for cyclists, there is an opportunity to promote sustainable transport by reducing car dependency, encouraging walking and cycling and improving community health.

Controls

C1. All new development is to provide on-site bike parking additional to other parking requirements, in accordance with *Part E2 - Table 2*.

C2. The location, design and construction of bicycle facilities is to comply with AS2890.3 and the *Blue Mountains Public Domain Technical Manual.*

C3. Bicycle parking for residents and/or staff should be located close to building entry/exits and lifts and be given priority over other parking uses to ensure they are well located, designed and ultimately used. Avoid locating bicycle parking in hidden niches, at the end of aisles and under staircases etc.

C4. Where parking is located in basement levels, bicycle parking must be located on the upper most basement level close to pedestrian exits.

C5. Bicycle parking spaces must be clearly marked and easily accessible, have good surveillance and provide a means of securely locking bicycle frames and wheels.

C6. A safe path of travel from bicycle parking areas to entry/exit points is to be marked and have a minimum width of 1.5m. Adequate sight lines are to be provided to ensure safety.

C7. Bicycle parking for visitors must be provided in an accessible on-grade location near a major public entrance to the development and is to be sign posted.

C8. Minimum locker provisions for work places should be in accordance with the NSW Planning Guidelines for Walking and Cycling.

Note: The minimum number of bike parking spaces is to be rounded up to the nearest whole number

Part E2 - Table 2: Bicycle parking rates

Sources: Marrickville Council, Sydney City Council and NSW Planning Guidelines for Walking and Cycling

Proposed Use	Resident/Employees	Customer/Visitors
Residential housing & accommodation		
Shop top housing, multi dwelling housing, residential flat buildings	1 bike space per 4 units	1 per 20 units
Boarding Houses and student accommodation	1 bike space per 4 rooms	1 per 20 rooms
Back packers' accommodation	1 bike space per 4 staff	1 per 20 beds
Serviced apartments, hotels and motels	1 bike space per 8 staff	1 per 40 rooms
All other development		
Commercial, retail, industrial, community, educational, recreation-al etc.	1 bike space per 15 car parking spaces.	

E2.3. Access

Explanation

The efficient functioning of the Blue Mountains relies upon safe, logical and appropriate access within and through the local government area, and between the public road network and private property.

In this regard access is considered a fundamental requirement for all development. Issues such as access and egress in medical or bush fire emergencies, waste collection, convenience of users and visitors are important considerations.

Controls

C1. All properties, development and new lots are required to have a legally constituted physical access from a formed public road.

C2. Access is to be located, designed and constructed so as to minimise environmental impacts, and avoid environmentally sensitive land unless no other alternative is available.

C3. All access is to be safe, convenient and practical, and constructed in accordance with the relevant standard.

E2.3.1. Public roads

Explanation

To ensure appropriate access is achievable to new development, all properties must have a legally constituted physical access from a formed public road. Depending upon the type of development, the impacts of that development, and the status of the proposed access, works may be required within an existing public road, or a new public road may need to be constructed and dedicated.

Controls

C1. Road reserve widths and the design and construction of public road infrastructure is to be in accordance with the Council's Design and Construction Specification and Public Domain Technical Manual.

C2. In bushfire prone areas, the road reserve widths and the design and construction of public road infrastructure is also to comply with the requirements of the NSW Rural Fire Service document Planning for Bush Fire Protection.

C3. Public road design and construction is to accommodate the expected future traffic volumes and nature of traffic.

Note: The RMS Guide to Traffic Generating Developments provides the basis for calculating the anticipated traffic volumes.

E2.3.2. Unformed public roads

Explanation

The extent of the trafficable public road network that is currently maintained by Council is classified as 'formed roads'. Beyond this extent, the road reserves are classified as 'unformed'. Unformed roads are not maintained or constructed by Council.

As a component of development, an applicant may propose to construct an unformed road. Before the Council can accept the responsibility for the maintenance of the unformed roads, the road infrastructure is required to be constructed in accordance with this provisions in this DCP. The cost of the survey, design, approvals, construction and inspections of these works is the responsibility of the applicant for the development which necessitated the works.

Upon completion of the road design and construction, the Council will reclassify the road as 'formed', and following a standard applicant maintenance period, the Council will take over the maintenance responsibility for that section of road.

Controls

C1. Where the road will only provide access to a single dwelling, the minimum construction standard required to reclassify an 'unformed' road to 'formed' is:

(a) the road carriageway is to be at least 4m wide, with a further 1m wide shoulder on both sides. In bush fire prone areas, the NSW Rural Fire Service may specify wider carriageway construction and removal of vegetation to facilitate bush fire vehicle access and protection in accordance with Planning for Bush Fire Protection; and

(b) the road pavement is to comply with the requirements of the Council's Design and Construction Specification, and be no less than 150mm thick compacted road base (DBG20) on an approved subgrade; and

(c) the road construction is to extend from the end of the 'formed' section of the road to the driveway onto the development site, plus a minimum of 6m beyond the driveway to facilitate any necessary reversing manoeuvres out of the site; and

(d) the road and pavement construction must incorporate adequate turning facilities at the end of the construction suitable for emergency, bush fire and waste collections vehicles to enter and leave in a forward direction; and

(e) the road must be sealed for any section where the grades of the road are between 10 and 16%. Where the grade of the road exceeds 16%, or for any sections subject to water flows, the road must be sealed with asphaltic concrete or concrete. Where more than 50% of the road is to be sealed because of these requirements, the entire length of the road construction shall be sealed; and

(f) where necessary to control stormwater runoff and minimise scouring, sealed gutters, concrete kerb and gutter and/or drainage infrastructure may be required; and

(g) passing bays must be provided at no greater than 100m distances. Passing bays are to be visible from one another.

C2. Where a development includes more than one dwelling, or where the road construction will ultimately provide access to multiple allotments, the carriageway must be at least 6m wide with a further 1m shoulder on both sides and be sealed for its full length.

C3. For other forms of development a higher standard of construction will apply and will be subject to the traffic generation expected from the development.

E2.3.3. Driveways

Explanation

Driveways to properties are necessary to ensure the shortest, most direct vehicle access is provided and that connections to public roads allow vehicle entry/exit in a safe and efficient manner.

Controls

C1. All development (other than development which is assessed as being of a temporary nature) that requires vehicle access, is to demonstrate that provision has been made for legally constituted access onto the land from a public road.

C2. Driveway design and construction is to comply with AS2890, Council's Design and Construction Specification, Council's Public Domain Technical Manual, and on bush fire prone land, in accordance with the NSW RFS Planning for Bush Fire Protection.

C3. The driveway is to be designed to minimise grades and to suit contours and must not be on slopes in excess of 33% unless there is no alternative available. Where no alternative is available, the driveway is to be no steeper than 25%, and minimise the extent of cut and fill batters by the use of retaining walls or similar.

C4. Driveways are to be generally no steeper than 5% across the road reserve verge, and no steeper than 25 % within the property.

C5. In order to minimise the risk of vehicles scraping or bottoming out, transitions of at least 2m in length are to be provided where the change of grade of the driveway exceeds 12.5%.

C6. Within the road reserve, driveways are to be constructed of reinforced concrete, at least 150mm thick, on an approved subgrade and include a concrete layback, dishdrain or rolltop kerb and gutter in the gutter alignment. Where the road shoulder is unsealed, the driveway construction is to include pavement construction and asphalt sealing to the edge of the sealed carriageway.

C7. Provision of driveways from classified or collector roads is not permitted if a suitable alternative is available from a side road or rear lane.

C8. Within the property, driveways are to be setback from the side boundary to facilitate landscaping as required for the nature of the development.

C9. Where driveways traverse a watercourse or a significant vegetation community, and it has been demonstrated that no alternative means of access is possible, such crossings must be a clear span construction rather than a culvert.

E2.3.4. Pedestrian access

Explanation

Due to the topography and character of the Blue Mountains, standards of pedestrian access vary widely, from full width sealed footpaths in town centres to heavily vegetated verges in rural areas where most pedestrians would walk along the carriageway.

The type of any pedestrian access to be provided in association with a development is dependent upon a variety of factors, including the nature of the development, the likely pedestrian generation and desire lines, the existing and future traffic volume within the local streets and the character of the area.

Controls

C1. Developments that generate significant pedestrian traffic, or require an accessible path of travel will be required to construct pedestrian pathways.

C2. The width, location and finish of pathways are to be in accordance with the Council's Design & Construction Specification and Public Domain Technical Manual.

E2.3.5. Bicycle access

Explanation

To encourage cycling as a mode of transport, good cycling access and routes should be designed into the urban fabric. This includes such measures as bicycle parking facilities, slower vehicle speeds and low traffic volumes, appropriate lane widths along local streets to allow cyclists to share travel lanes with cars, wide kerbside lanes on busy streets and routes parallel to collector, local distributor and roads of higher classification.

Controls

C1. Where a development proposes bicycle paths and facilities, they are to be consistent with the NSW Bicycle Guidelines (RTA 2003), Austroads Part 14 for Bicycle Facilities, the Council's policies regarding pedestrian access and mobility and the Blue Mountains Public Domain Technical Manual.

C2. The minimum width of off-street shared cycle and pedestrian pathways is to be 2.5m on local routes and 3m on major connector routes and constructed using common, robust materials with a long durability and which are easily repaired. Shared cycle and pedestrian pathways are to be sealed.

C3. Pedestrian and cycle routes and facilities in public spaces are to be safe, well lit, clearly defined, functional and accessible to all.

C4. Cycle pathways and pedestrian refuge islands are to be designed to be fully accessible by all in terms of access points and gradients, in accordance with AS 1428.

E2.4. Travel Plan

Explanation

A Travel Plan is a management strategy for delivering behavioural change and sustainable travel patterns across a development. It is used to influence travel behaviour associated with the ongoing use and occupation of the development site. Different land uses may require different forms of travel plans.

Objectives

O1. To encourage greater use of public transport, cycling, walking and car sharing by employees, visitors and residents.

O2. Reduce car trips, particularly single-occupancy car trips.

Controls

C1. A Travel Plan must be submitted with all development applications where the estimated peak trip generation is greater or equal to:

(a) 30 vehicles per hour for non-residential development, or

(b) 20 vehicles per hour for residential development, or

(c) Is likely to generate significant traffic impacts according to Council.

Trip generation must be determined in accordance with the TfNSW Guide to Transport Impact Assessment.

C2. The Travel Plan is to be prepared in accordance with TfNSW Guide to Transport Impact Assessment by a suitability qualified traffic or transport consultant.

Note: The undertakings made in a Travel Plan submitted with a development application may be included as conditions to any development consent.

PART E3
ACCESSIBILITY, ADAPTABILITY AND HOUSING CHOICE

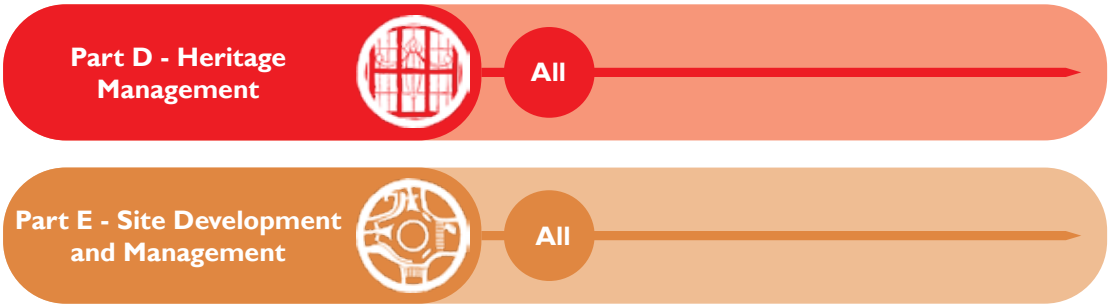


Introduction

Accessibility is an integral element of any development, particularly in the context of the aging population. The provisions within this section aim to ensure that people with a disability, the elderly and those with limited mobility have dignified and equitable access to buildings, facilities and services. This part also addresses the need for buildings to be adaptable, so that as people age or their situation changes, they are able to easily modify living spaces in a relatively straightforward way to suit their needs.

Housing choice is also another component of accessible housing. These provisions recognise that more modest, and therefore affordable dwellings are likely to be in demand as family sizes get smaller and the population ages.

Read in conjunction with:



Submission requirements:

One or more of the following types of reports may need to accompany a development application:

- *Access report*

Relationship to other legislation and documents :

- *Disability Discrimination Act 1992*
- *Disability (Access to Premises – Buildings) Standards 2010*

E3.1. Accessibility

Explanation

An accessible building is one that incorporates features to enable dignified and equitable use of that building by people with a disability. *The Disability (Access to Premises – Buildings) Standards 2010* prescribes a single set of design and construction requirements covering access to new buildings and an extension to, or modification of, an existing building. These requirements are called up by the *National Construction Code* (NCC).

Objectives

O1. To ensure that dignified and equitable access to buildings, and facilities and services within buildings, is provided for people with disabilities.

Controls

C1. All new building work is to comply with the accessibility provisions of the *Disability (Access to Premises – Buildings) Standards 2010* and the *National Construction Code (NCC)* as required.

Access and Heritage

C2. The provision of access for people to and within a heritage item or a building within a heritage conservation area (HCA) is to minimise impact on the significant fabric and setting of the item or HCA and, as far as practical, be reversible.

Note: Refer to Part D Heritage Management for guidance and controls in respect of heritage listed buildings.

Access and Public Land

C3. Encroachment upon or alteration of public land to achieve compliance with accessibility requirements will not be permitted except in circumstances where it can be demonstrated that:

(a) access by other means will result in substantial adverse impacts to significant fabric of a heritage item or heritage conservation area, and there are no alternative access options available, or

(b) the proposal involves a public building or a building intended for general use by the public and there are no alternative access options available.

C4. Development proposals that encroach upon or alter public land will not be permitted unless it can be demonstrated that the safety, accessibility, and functionality of public land will not be adversely affected.

Consideration of alternative solutions

C5. In cases where a development proposal does not achieve strict compliance with accessibility requirements, Council may request that the applicant submit a report prepared by a suitably qualified access consultant which demonstrates that the proposed alternative solution satisfies the relevant performance requirements of the NCC.

E3.2. Adaptability

Explanation

Adaptable housing is housing that is designed and constructed in such a way that it can be modified easily and at minimum cost to become accessible to both occupants and visitors with disabilities or progressive frailties. Provision of adaptable housing is particularly important in the Blue Mountains where the proportion of older people in the community is steadily increasing and access to care facilities is more limited than within major urban centres. Particular focus is required in relation to the increased proportion of older people in the population that is not matched by a commensurate increase in suitable housing stock to meet these changing needs.

Note: adaptability requirements for seniors housing is necessarily greater than the provisions outlined here - see Part F7 for additional requirements.

Objectives

O1. To ensure that new dual occupancies and a proportion of dwellings within new development that comprise 3 or more dwellings are designed to be flexible and easily modified to cater for occupants and visitors with disabilities or progressive frailties.

Controls

C1. At least one of the dwellings comprising a dual occupancy is to be adaptable.

C2. Where a new development comprises 3 or more dwellings, adaptable housing is to be provided in accordance with the *Part E3 - Table 1*.

Part E3 - Table 1: Adaptable housing.

No. of dwellings	Minimum No. of adaptable units
3-5 dwellings	2 adaptable dwellings
6-10 dwellings	3 adaptable dwellings
11+ dwellings	4 adaptable dwellings + 20% of additional dwellings beyond 10 (rounded up to the nearest whole number).

C3. All adaptable housing is to be designed and constructed in accordance with Australian Standard 4299 – Adaptable Housing, incorporating as a minimum all essential features to satisfy Classification Level C of that Standard.

C4. To provide a range of housing options, adaptable dwellings are to be evenly distributed among different dwelling types and sizes within the development.

E3.3. Housing Choice

Explanation

Australian Bureau of Statistics data indicates that over the years there has been a marked change to family composition, with a greater proportion of couples without children, single parent families and an elderly population that is aging in place. As family composition changes the housing stock required to house the population should meet changing demands. It is important that multi dwelling housing developments and seniors housing developments in the Blue Mountains respond to the housing needs of the community over time.

Objectives

O1. To ensure that development for the purposes of multi dwelling housing contributes to the provision of housing choice in the Blue Mountains.

Controls

C1. New multi dwelling housing developments shall incorporate a range of dwelling sizes, particularly contributing to the increased provision of single and two bedroom dwelling stock.

C2. At least 33% of dwellings (to the nearest whole number) within a new multi dwelling housing development shall have a gross floor area not greater than 100m^2.

C3. Seniors housing developments comprising of self contained dwellings, should provide diverse options, to meet a range of housing needs. At least 50% (rounding down to the nearest whole number) of the proposed dwellings in a new seniors housing development should be one or two bedroom dwellings.

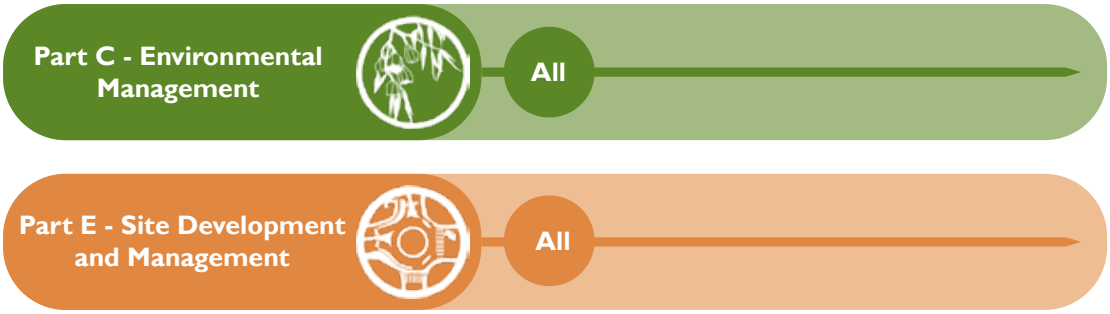
PART E4
SITE MANAGEMENT



Introduction

This part of the DCP provides requirements for the management of sites during the demolition and construction phases of development. While some of these requirements may be embodied in conditions of consent, it is important that consideration is given to site management at the planning stage of a development, to ensure that all requirements can be effectively addressed. This part will also stipulate when certain documents / reports are to be submitted with a development application.

Read in conjunction with:



Submission requirements:

One or more of the following types of reports may need to accompany a development application:

- *Construction Management Plan;*
- *Noise Management Plan;*
- *Noise and Vibration Report;*
- *Erosion and Sediment Control Plan;*
- *Soil and Water Management Plan*

E4.1. Protecting amenity

Explanation

The demolition and construction phases of a development can be potentially disruptive to residents or businesses adjoining, and nearby development sites. The following objectives and controls seek to limit the likelihood of adverse impacts during the construction phase of a development, through effective site management.

Objectives

O1. To ensure that neighbourhood and environmental amenity is not compromised by way of excessive noise, vibration, odours and emissions during the demolition and construction phases of development.

Controls

Hours of work

C1. Hours of work are generally to be confined to 7am to 6pm Monday to Friday and 8am to 3pm on Saturdays. No work is permitted on Sundays or public holidays.

C2. Hours of work in town centres may also be further restricted on Saturdays, or between Christmas and New Year, or within specific event periods within that town centre.

Noise & vibration

C3. Noise or vibration generated during demolition and construction of the development is to be managed so as not to adversely impact the amenity of residents or businesses adjoining or nearby the development site.

Note: Refer to the Interim Construction Noise Guideline (DECC 2009) and Accessing Vibration: A Technical Guideline (DEC 2006) for information regarding how best to manage demolition / construction noise and vibration.

C4. Where the construction phase of a development is likely to exceed 26 weeks the construction is to be managed in accordance with a *Noise Management Plan* (NMP) prepared by a suitably qualified acoustic consultant.

Note: The NMP will typically form part of a comprehensive *Construction Management Plan*. Council will determine if the NMP is required prior to determination of the application or at construction certificate stage.

C5. Where there is considered to be a reasonable likelihood that construction noise or vibration is adversely impacting amenity, Council may request an independent report to confirm that noise emissions are within acceptable limits. Costs associated with the report will be the responsibility of the applicant.

E4.2. Site disturbance

Explanation

Limiting site disturbance begins at the design stage of the project. Buildings and structures should be positioned according to the capability of the site and its characteristics, for example, to avoid slopes where possible. Minimising site disturbance is also an important consideration during construction. Minimal site disturbance equates to a more orderly building site and limits the potential for erosion and sediment migration and the associated environmental impacts.

Objectives

O1. To ensure that site disturbance is minimised during the demolition and construction phases of development, in order to limit potential for erosion and facilitate early rehabilitation of the site post-construction.

Controls

C1. Development is to be staged in order to minimise the extent and duration of site disturbance.

C2. Grassed areas and vegetation are to be preserved where possible, clearing only those areas necessary to enable construction works to occur.

E4.3. Erosion and sediment control

Explanation

Efficient erosion and sediment control is part of good site management. Benefits include cleaner waterways, healthier aquatic life and reduced clean-up costs to the community. Added benefits to the developer include improved site conditions and wet weather access.

Objectives

O1. To prevent sediment, building materials, waste and other pollutants from leaving the site and entering adjoining land, street gutters, drains or watercourses.

Controls

C1. For proposals where the area of soil disturbance is less than 2,500m^2 (excluding minor additions and development that disturbs less than 50m^2 of the site), an *Erosion and Sediment Control Plan* (ESCP) is to accompany the development application.

C2. For proposals where the area of soil disturbance is more than 2500m2, a Soil and Water Management Plan (SWMP) is to be prepared in accordance with *Managing Urban Stormwater: Soils and Construction – Volume 1 (4th Ed. Landcom 2004)* and lodged with the development application.

C3. The ESCP/SWMP is to be prepared in accordance with *Guidelines for erosion and sediment control on building sites (Department of Planning, Housing and Infrastructure October 2024)* and should address, but not be limited to, the following:

(a) the location and extent of all existing and proposed areas where the natural ground cover is or will be disturbed; and

(b) the location of natural areas requiring specific planning or management responses including watercourses, seasonally wet areas, areas prone to ponding or waterlogging and unstable slopes; and

(c) the nature and extent of all earthworks, including the location, extent and depth of any proposed cut or fill; and

(d) the location of all potential sources of sediment on the site, including (where known) any stock piles of soil or building materials or waste; and

(e) the location and nature of proposed stormwater management or erosion and sediment control measures; and

(f) site rehabilitation proposals, including final contours.

C4. Where the nature, scale or location of a proposed development warrants a greater level of detail to facilitate the full consideration of the proposed development, an ESCP/SWMP is to include, in addition to those elements referred to in C3:

(a) a maintenance strategy for erosion and sediment control works including the nomination of responsibility for the follow-up maintenance required on any permanent measures, and

(b) a chart outlining the construction sequence over the duration of the works including measures for erosion and sediment control and their maintenance, and

(c) a description of the effect of any permanent site controls on the sub-catchments or catchments.

C5. The maximum area of soil exposure at any one time must not exceed 2.5 hectares.

Note: Council may vary requirements, especially where there is a higher or lower risk of polluting receiving waters. Further information may be required for any site depending on, but not limited to, the calculated soil loss, sediment type and an assessment of site constraints and opportunities.

E4.4. Exclusion zones and tree protection during construction

Explanation

Trees, vegetation and other significant site features such as slopes and rock outcrops can be damaged and irreparably compromised during the demolition, site preparation and construction phases of a project. Care should be taken to ensure that activity, including stockpiling and plant operation, only occurs on that part of the site where development works are being undertaken.

Objectives

O1. To protect trees, vegetation and other significant site features during the demolition, site preparation and construction phases of a development.

Controls

C1. Provision is to be made for an exclusion zone to be established and maintained around the immediate perimeter of an approved development including driveway and associated construction works. This is to be established prior to the commencement of any work on site, including site preparation and clearing.

C2. During site development, there is to be:

(a) no placement of temporary buildings or stockpiling of material; and

(b) no parking or movement of machinery; and

(c) no change to the soil grade or level; and

(d) no changes to soil aeration or hydrological capacity; and

(e) no open cut trenching; and

(f) no spillage/disposal of any building chemicals.

C3. Tree Protection Zones (TPZs) are to be established around all trees to be retained and are to ensure that the root zone of trees are not impacted by:

(a) physical damage; and

(b) excavation or increased soil levels; and

(c) storage of building materials and placement of worker's amenities etc; and

(d) installation of underground services; and

(e) chemical run-off (including concrete wash, paint wash etc.); and

(f) parking and operation of vehicles and plant; and

(g) altered hydrology.

Note 1: Tree Protection Zones are to be established in accordance with Australian Standard *AS 4970 Protection of Trees on Development Sites* (unless alternative measures are specified by the project arborist).

Note 2: Where unintended loss of trees occur, compensatory actions are likely to be required. These include measures such as tree replenishment and site rehabilitation.



E4.5. Demolition management

Explanation

Consent is generally required for demolition works, other than for the demolition of development that would be exempt under *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*. Applying for demolition consent may form part of the development application to redevelop the site.

Note: Demolition waste is to be managed and disposed of in accordance with E6 Waste Management of this DCP.

Objectives

O1. To ensure that demolition is carried out by a competent person in a safe and coordinated manner, limiting any adverse impacts on adjoining and nearby properties.

O2. To ensure that the reuse potential of building materials is maximised through careful deconstruction of existing buildings and structures.

Controls

C1. Demolition should be carried out in the reverse order of construction and in a manner that minimises the noise, dust and vibration impacts on the adjoining buildings and properties.

C2. Demolition works must be carried out by a competent person and in accordance with the requirements of the Work Cover Authority. The site must be secured at all times against unauthorised entry of persons or vehicles.

C3. All materials are to be kept damp during the demolition process to limit dust, while ensuring that any excess water is contained and managed on the site.

C4. Where the soil conditions are changeable, consideration should be given to the use of shoring or underpinning.

E4.6. Decommissioning sewage systems

Explanation

As reticulated sewerage becomes available to an area and premises connect to the sewer, existing septic tanks and collection wells become redundant. These on-site sewage management facilities can be demolished, or reused as a stormwater storage vessel. There is also potential for these systems to be sold second hand and reinstalled. Where it is feasible to reuse a septic tank, collection well, or Aerated Waste Treatment System (AWTS) there are a number of precautions to be observed to minimise risks to public health.

Objectives

O1. To ensure that redundant septic tanks and collection wells are decommissioned in a safe and appropriate manner.

Controls

C1. Septic tanks, collection wells and / or any other waste management system are not to be reused to hold water for domestic purposes.

C2. To demolish a septic tank and / or collection well the following guidelines are to be followed:

(a) a contractor licensed by the Environmental Protection Authority is to be engaged to remove the contents of the septic tank / collection well; and

(b) the sides, lid, baffle (if fitted) and square junctions of the tank are to be hosed down as the waste is being removed; and

(c) the tank is to be disinfected by spreading builders lime over the exposed surfaces; and

(d) the base of the tank should be punctured with several holes. The lid and those parts of the walls, baffle and square junctions above the ground should be demolished and collapsed into the tank and the tank filled with clean soil or rubble and topped with clean soil.

E4.7. Asbestos

Explanation

Certain building materials have the potential to cause harm if they are incorrectly handled, stored or transported. Domestic building materials produced prior to 1987 commonly contain asbestos. Generally building materials containing asbestos will not present a health problem unless they are disturbed or damaged typically during demolition, renovation or maintenance.

Objectives

O1. To ensure that hazardous materials are handled, stored and transported according to legal requirements and best practice methods so as to reduce the chances of exposure and subsequent harm to human life.

Controls

C1. The handling, storage, transportation and disposal of asbestos is to be undertaken in accordance with the provisions of the *Work Health and Safety Regulation 2017* and the *Protection of the Environment Operations (Waste) Regulation 2014*.

Note: Refer to the NSW Environmental Protection Authority and NSW WorkCover websites for information and fact sheets relating to the handling and disposal of asbestos material.

C2. Where a development proposal involves the demolition of or disturbance to building material produced prior to 1987, such material is to be assessed by a qualified occupational hygienist or other suitably qualified professional, prior to commencing work. The assessment is to determine the presence and extent of asbestos material, so that it may be handled and disposed of appropriately .

Note: Details of testing authorities and licensed asbestos removal contractors are available from WorkCover.

C3. Buildings clad in asbestos cement cannot be relocated, re-sited or re-clad unless all cladding containing asbestos is removed.

C4. Any asbestos cement cladding on existing buildings that is proposed to be cladded over or re-clad is to be removed.

C5. A licensed asbestos contractor is to be engaged to deconstruct and dispose of fire damaged buildings containing asbestos (generally, any building or structure that comprises building materials produced prior to 1987).

Note: Asbestos waste can only be disposed of at specific landfills located in various regions of in NSW. Blaxland Waste Management facility is one such location however asbestos is accepted by appointment only. Refer to the *Disposal of Asbestos in the Blue Mountains* fact sheet for further information in regard to asbestos disposal practices. The fact sheet can be downloaded from Council's website.

PART E5
SAFETY AND SECURITY



Introduction

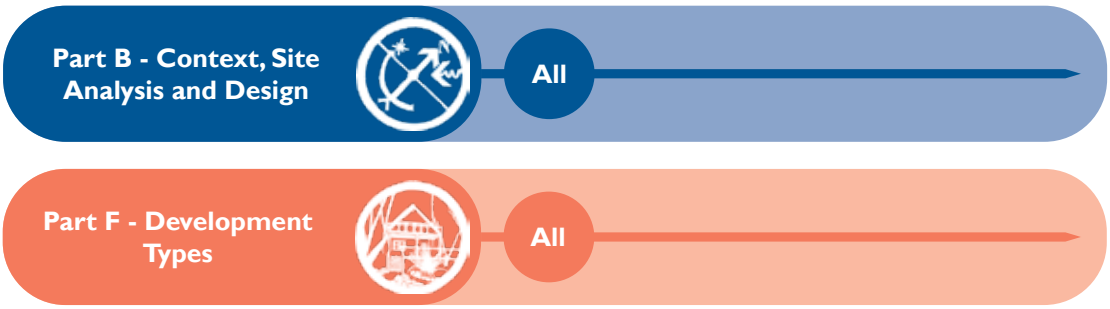
Consideration of safety and social impact are essential for all development. A particular development may have an effect on the whole community, the local economy or on particular groups, businesses or individuals in the community. This may be due to the type or scale of a development, but also elements of how a development is operated and maintained.

This part of the DCP addresses a number of safety considerations for development, beginning with the broader principles of crime minimisation through environmental design. The design of development can contribute significantly to crime minimisation through surveillance of open spaces and creating clear pathways for access to and through public areas.

This part also provides guidance on social impact assessments and the need to consider how a particular development, or elements of that development, are likely to impact on individuals but also the community more broadly. This may be due to the type of land use proposed, the scale of the use, or the fact that the proposal is a significant change from the current use of the site.

Specific safety considerations are also included here, namely designing for food safety, and requirements for fire safety within buildings. Controls in these areas are predominantly found in national and state legislation, and the Australian Standards. The relevant provisions are summarised in the following part of this DCP.

Read in conjunction with:



Submission requirements:

One or more of the following types of reports may need to accompany a development application:

- *Social Impact Assessment*

E5.1. Crime minimisation

Explanation

The design of urban spaces, including streetscapes and parks, and also private development should include design for crime prevention through environmental design (CPTED). The principles of CPTED require a design approach that seeks to deter criminal and undesirable activity, by reducing opportunities for crime. This can occur through increasing opportunities for the surveillance of open spaces, directing pedestrian movements in public places, and limiting environments where criminal acts can occur.

The four principles of CPTED are:

(a) **Surveillance** - enabling maximum natural surveillance of buildings, streets, car parking facilities and open spaces.

(b) **Access control** - providing a clear indication of areas where people are and are not permitted to go, and incorporating security measures to restrict access to private or high risk areas.

(c) **Territorial reinforcement** - encouraging the ownership of public space, clearly delineating between public and private space, and designing spaces to reflect the intended use.

(d) **Space management** - ensuring that spaces are well maintained and used as they were intended.

Applicants are encouraged to read the Guidelines for CPTED, which are appended to this DCP in Part J5.

Objectives

O1. To ensure that development is designed to reduce crime risk and minimise opportunities for crime.

O2. To optimise safety and the perception of safety in public and semi-public spaces.

O3. To encourage the consideration and application of crime prevention principles when designing, siting and landscaping buildings and spaces, to avoid dark and non-visible areas and provide clear, safe access points.

O4. To encourage dwelling layouts and considered choice of materials that facilitate safety, passive surveillance and encourage interaction and recognition between residents.

O5. To provide quality public spaces that cater for desired recreational uses, provide lighting appropriate to the location and desired activities, and clearly define public and private spaces.

E5.1.1. General provisions for all development

C1. Design is to minimise the opportunity for crime by:

(a) ensuring that passive surveillance of buildings, streets, car parking facilities and open spaces is maximised, and

(b) utilising elements such as signage, building features or landscaping to reduce the likelihood of inappropriate activity and clearly define individual areas and uses, and

(c) incorporating landscaping, without providing places for concealment.

C2. Development is to provide or enhance opportunities for effective passive surveillance by providing:

(a) clear sight lines between public and private places, and

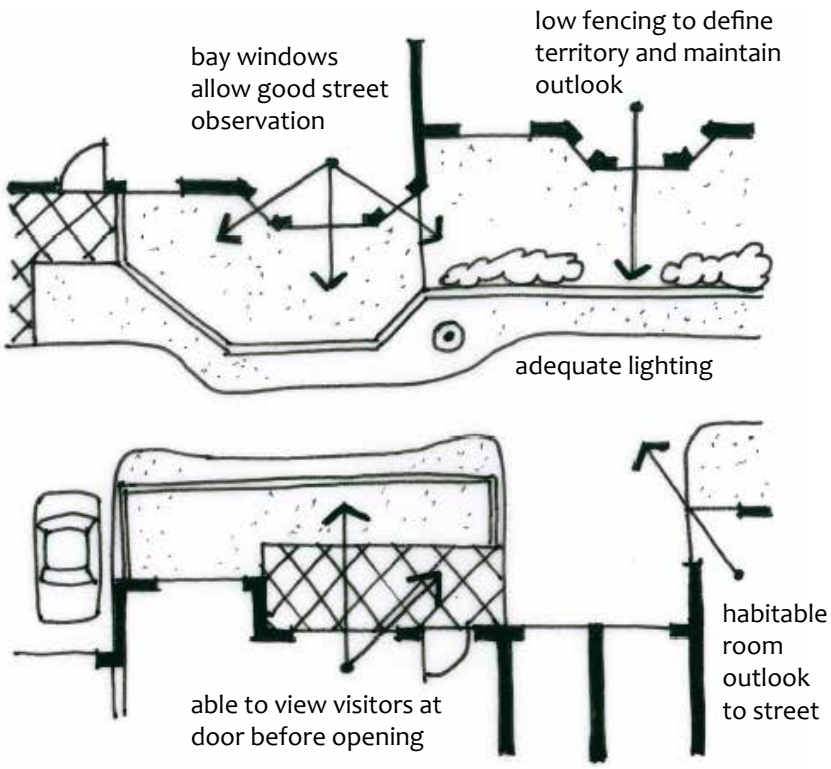
(b) designs which maximise natural observation of vehicle and pedestrian movement.

C3. Access to development is to be controlled by:

(a) avoiding upper level access due to large trees, carports, skillion extensions, fences or downpipes next to upper level windows or balconies; and

(b) restricting access from the balconies, roofs and windows of neighbouring development.

C4. Development is to reinforce site boundaries and distinct areas by providing transitional features to strengthen the distinction between private space and the public domain. Strategies could include fences, gardens, lawn strips, and varying textured surfaces to create physical or psychological barriers.



Part E5: Figure 1: Security by design. Source: Amcord

E5.1.2. Additional provisions for Multi-dwelling housing, Commercial, Industrial and Mixed-use developments

C1. Development for the purposes of medium-density housing and certain commercial, industrial and/or mixed-use development proposals may be required to provide a crime minimisation statement which demonstrates how the development has been designed with consideration to the principles of crime prevention through environmental design (CPTED) and the provisions of this section.

Note: This requirement is in accordance with Council's *Blue Mountains Crime Prevention Plan 2014-2017.*

C2. Development is to provide opportunities for passive **surveillance** by:

(a) positioning active uses or habitable rooms with windows adjacent to main communal/public areas, such as playgrounds, swimming pools, gardens, car parks, etc., and

Note: Passive surveillance from interior spaces needs to be balanced with potential acoustic impacts on habitable areas.

(b) creating staff entrances that are separate from the main entrance and located to maximise opportunities for natural surveillance from the street or other public areas, and

(c) locating offices, desks, and work-stations so as to overlook public areas, car parking areas and entrances to buildings, and

(d) activating façades at ground level by locating after-hours uses so they are visible from the publicly accessible areas.

C3. Development **access** is to be controlled by:

(a) providing separate access from public and common areas, and

(b) providing separate access for any residential components of mixed-use developments, and

(c) providing secure keyed or electronic access for residents where appropriate, and

(d) fitting the main entry doors with viewing ports to allow identification of visitors, and

(e) designing the route between the main entrance of a development and the dwellings within it to maximise occupant safety and be as direct as possible. The routes from car parking areas to the lift lobby are particularly important in this regard. Clear sight lines and well-lit routes are to be provided.

C4. **Concealment** opportunities are to be minimised from development by:

(a) eliminating blind or dark alcoves near lifts and stairwells, and

(b) providing clear sight lines and well lit routes throughout the development, and

(c) providing appropriate levels of illumination for all common areas.

C5. Development is to encourage a sense of **community ownership** of public spaces by:

(a) encouraging people to gather in common spaces and engender a sense of responsibility for its use and condition, and

(b) clearly defining the use of common spaces, and

(c) distinguishing dwellings or groups of dwellings or uses by using design features such as colour, vegetation, paving, fencing, furniture etc.

C6. Where, as a result of the nature of the development, there are specific security requirements, measures to meet such requirements are to be included at the design stage and identified on submitted plans.

C7. Roller shutters are discouraged in preference to retractable open security grilles, such as scissor grilles.

C8. Larger scale developments and developments for certain land uses may be referred to the NSW Police Service for formal comment and are likely to require a crime minimisation statement. These developments include:

(a) multi-dwelling housing of 20 or more dwellings; and

(b) mixed use developments (incorporating retail/commercial and residential uses) containing more than 5 dwellings; and

(c) new or upgraded commercial/retail developments which include substantial building works and entry/access changes; and

(d) new industrial development with multiple industrial units; and

(e) new or upgraded schools, child care centres, hospitals; and

(f) any development on or associated with railway stations; and

(g) large sporting or community facilities; and

(h) clubs and hotels (including additions, applications for liquor licences, extension to operating hours, gaming rooms etc.); and

(i) service stations (including the addition of retail element); and

(j) atypical developments (including sex services premises, amusement centres etc.); and

(k) community parks (whether large or small); and

(l) civic buildings/development (such as libraries, public open space).

Note: Requirements will vary depending on the size and scope of the application. This requirement is in accordance with Council's *Blue Mountains Crime Prevention Plan 2014-2017.*

E5.2. Social Impacts

Explanation

The potential social impact of a proposed development is one of the matters Council is obligated to consider under the provisions of clause 4.15 of the *Environmental Planning and Assessment Act 1979*. An assessment of social impact seeks to understand what the potential impact of a development will be on people. It also aims to anticipate outcomes that may flow from a proposed development which could affect a person's way of life, culture or the community both now and in the future.

The scale of development can contribute to social impact, in conjunction with the type of development and the degree of change that will occur as a result of the proposal, for example a significant change in the type or intensity of a land use, or the introduction of a new use which may attract community interest or debate.

The following sections provide guidelines on when a social impact statement may be required, and the core matters that should be considered within this statement.

Objectives

O1. To respond to and enhance the social context and the needs of the local community.

Controls

C1. A social impact assessment may be required to be submitted with certain applications where required by Council. Circumstances where a specific social impact assessment may be required include developments that are likely to have:

(a) a distinct effect on a particular social group, or

(b) an identifiable effect on the social composition and/or character of a locality, or

(c) an identifiable effect on the availability and use of existing community services and facilities or where these services and facilities may be required, or

(d) an impact that is normally conventionally assessed, for example traffic noise, may have a differential effect on various social groups.

C2. Social impact assessments are to address the considerations relevant to the proposal and site which can include but are not limited to:

(a) the effects of increased population densities in established urban areas, which may include traffic or urban design impacts, and

(b) effects on the amenity or character of the local area arising from the number and/or characteristics of the incoming population, and

(c) effects on the incoming residents themselves, and

(d) displacement effects, that is, the direct effects on residents and other activities occupying a site that is being considered for redevelopment for urban housing.

C3. A social impact assessment will generally require community consultation and a sound analysis of existing social conditions.

E5.3. Design of food premises

Explanation

Food safety practices are essential for the health and safety of our community. The design, construction and fit-out of food premises is essential to satisfy relevant standards and ensure good food-handling practices, health and hygiene are maintained where food is prepared and/or sold.

All food premises, including temporary food operators/stalls, mobile food vendors, home businesses, community service groups and charities are required to notify Council of their activities and obtain approval from Council in order to operate. The relevant requirements of the *Food Act 2003* and the Food Standards Code are to be met.

Council's Environmental Health Officers inspect all registered food premises prior to operation. They also regularly check compliance with the relevant food safety requirements and the condition and cleanliness of the premises.

Applicants are encouraged to read the Guidelines for Food Safety, which are appended to this DCP in Part J6.

Objectives

O1. To ensure that all food premises and food practices are designed and operated to meet the minimum standards for food safety in order to maintain the health and well-being of the community.

Controls

C1. All food premises must be designed, constructed and operated in accordance with the following requirements:

(a) NSW Food Act 2003, and

(b) NSW Food Regulation 2015, and

(c) Australia & New Zealand Food Authority (ANZFA) Food Standards Code, and

(d) Australian Standard AS4674 Design, construction and fit-out of food premises, and

(e) Building Code of Australia.

C2. Development that proposes kitchen facilities must provide a detailed layout on an appropriately-scaled drawing that adequately identifies the details of the proposed kitchen facilities, and addresses the requirements of AS4674 Design, construction and fit-out of food premises.

C3. Mobile food or drink vendors must have approval under section 68 of the *Local Government Act 1993* to sell food, drinks or any articles in a public place (for example a road, footpath, public park or reserve). An application and registration form must be submitted to Council at least 14 days prior to the proposed commencement of trade.

C4. Temporary food stalls or vendors being provided as part of a community event, must provide all relevant details, including a copy of the Public Liability Insurance, to the Event Organiser for inclusion in the Festivals and Events Application Form submitted by the Event Organiser to Council for events on public land.

Note 1: Events may require consent for a temporary use or temporary structures.

Note 2: Events such as fetes and markets which are normally held on private land such as schools and churches do not come under the Event Application process and will need to be addressed under a separate process.

Note 3: Street stalls also have a separate application process.

Note 4: Charities, fundraisers and 'home made goods' may all have requirements to notify the NSW Food Authority and/or Council in regard to food production and sale.

C5. Temporary food premises and home businesses that prepare food are required to be registered with Council.

Notes: All food business operators are also required to provide their business details to the NSW Food Authority. For detailed information, refer to the information, standards and fact sheets provided by Food Standards Australia New Zealand and the NSW Food Authority. Fact Sheets on the Food Standards Australia New Zealand (FSANZ) website are available in a range of languages other than English.

E5.4. Fire safety in buildings

Explanation

Clauses 62 and 64 of the *Environmental Planning and Assessment Regulation 2021* require Council to assess existing buildings for compliance with current fire safety standards when development is proposed. Clause 62 applies when a change of use is proposed without any building construction works. Clause 64 applies when alterations and additions are proposed. Council may require an applicant to upgrade some or all of the non-compliant components of the existing building. This upgrading can include any of the following:

(a) alterations to existing features to support fire safety and safe egress under fire conditions. This can include changes to building materials, stairs, lifts, corridors, railings, or

(b) installation of fire safety features such as sprinklers, drenchers over windows, smoke alarms, hose reels, extinguishers, blankets, exit signs, and emergency lighting, or

(c) reducing the distances to exits or providing additional means of egress.

Council will also assess the merits of any new buildings in regard to fire safety outcomes and may request changes to proposed development to achieve compliance with fire safety regulations.

Retrofitting of fire safety measures in heritage buildings is dealt with in Part D Heritage of this DCP.

Objectives

O1. To ensure that existing buildings are upgraded to an acceptable level of fire safety.

O2. To ensure that all new building work provides for an acceptable level of fire safety to persons or property in the vicinity.

Controls

Single residential dwellings and secondary dwellings

C1. Smoke alarms are to be installed in appropriate locations when new buildings or alterations and additions are proposed. For single residential dwellings and secondary dwellings the location of smoke alarms must be shown on the floor plan.

Note: Approved smoke alarms must be installed in accordance with the Building Code of Australia and Australian Standard AS 3786-2024 - Smoke Alarms.

Commercial, industrial, public buildings and residential flat buildings

C2. For building work (other than work in relation to a dwelling house or building or structure that is ancillary to a dwelling house) under a complying development certificate or a construction certificate, a list of any existing or proposed fire safety measures is to be provided in relation to the subject building on the land as a consequence of the building work. The list must describe the minimum standard of performance of each of the measures concerned.

C3. For a change of use, whether via a development application or a complying development certificate, the proposed and existing fire safety measures are required to be considered in accordance with Category 1 Fire Safety Provisions means the following provisions of the Building Code of Australia, including:

Volume 1

(a) E1P3 (Fire Hydrants);

(b) E1P4 (Automatic Fire Suppression Systems);

(c) E1P6 (Fire Control Centres);

(d) E2P1 (Automatic warning for sleeping occupants);

(e) E2P2 (Safe Evacuation Routes);

(f) E3P2 (Emergency Lifts); and

Volume 2

(g) H3P2 (Automatic warning for occupants)

Essential fire safety requirements

C4. Buildings containing essential fire safety measures must be inspected and tested at regular intervals and building owners are required to submit an Annual Fire Safety Statement to Council each year.

Note: The essential fire safety measures apply to all Class 2 to Class 9 buildings that have been issued with a building approval, construction certificate, complying development certificate or fire safety notice or order by Council.

C5. Building owners are required to submit a Fire Safety Certificate to Council before a new building or part of a building is occupied, and when works required under a Council fire safety order are completed.

C6. Copies of the Fire Safety Certificate and Fire Safety Statement must be displayed in a conspicuous position in the building and also be forwarded to the Fire and Rescue NSW.

Notes: The regulations for Fire Safety Certificates and Fire Safety Statements are set out in Parts 11 and 12 of the *Environmental Planning and Assessment (Development Certification and Fire Saftey) Regulation 2021*.

An Annual Fire Safety Statement must be issued within 12 months of the original certificate or statement being issued. It must be given to Council every year by the due date.

Building owners (including owners' corporations and strata schemes) must arrange for their fire safety measures to be inspected and certified in advance to ensure that the fire safety statement can be given to Council by the due date. Owners are advised to employ a professional building and fire safety consultant.

Failure to comply with these requirements by the due date is an offence and will make the owner liable to substantial penalties.



PART E6
WASTE MANAGEMENT



Introduction

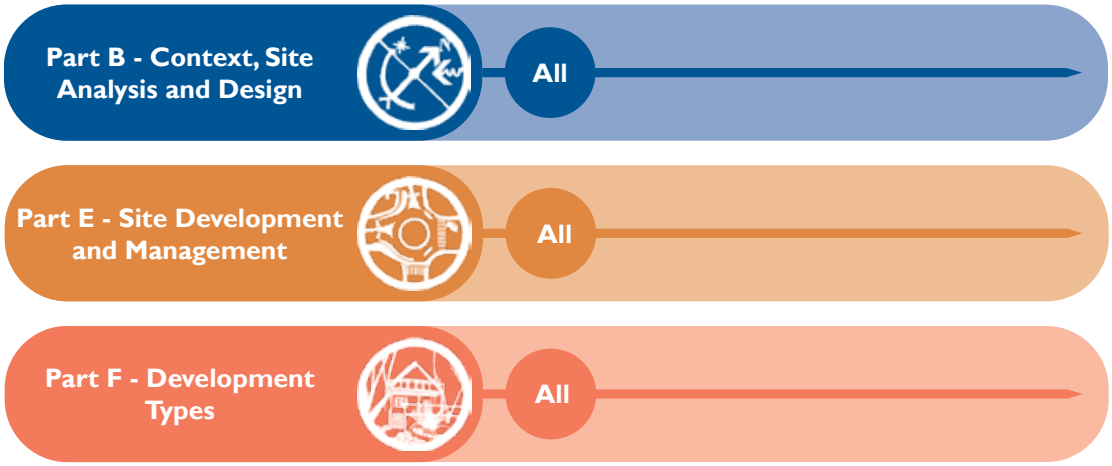
Waste and resource consumption is a major environmental issue and a priority for all levels of government within Australia. This is particularly the case in the Blue Mountains as the community owns only one site which is suitable for landfill operation, and this site has limited remaining life. In this context landfill space is an extremely precious commodity. Everyone in the community is exposed to the issue of managing the increasingly large volumes of waste generated by our society, and conservation of resources is an increasing imperative.

More sustainable resource management and waste minimisation has emerged as a priority action area in the movement towards Ecologically Sustainable Development (ESD). Critical actions in this regard include the following, in order of priority:

- avoiding unnecessary resource consumption; and
- recovering resources for reuse; and
- recovering resources for recycling or reprocessing; and
- disposing of residual waste (as a last resort).

Building and construction activities have the potential to be major contributors to waste, much of which may be deposited to landfill. The implementation of effective waste avoidance and minimisation strategies has the potential to significantly reduce these volumes. Effective waste planning and management can also benefit the builder/developer through reduced costs, improved workplace safety, enhanced public image and compliance with relevant legislation.

Read in conjunction with:



Relationship to other legislation:

The following legislation and policy provides requirements and provisions for waste management:

- *Local Government Act, 1993*
- *The Waste Avoidance and Resource Recovery Act, 2001*
- *Protection of the Environment Operations Act, 1997*
- *NSW Disability Inclusion Act, 2014*
- *NSW Workplace Health and Safety Act, 2011*
- *The Food Act, 2003*

E6.1. Waste Management Objectives

O1. To ensure waste minimisation by encouraging resource use, recovery and recycling during demolition, construction and for the ongoing life of the development.

O2. To ensure waste systems are functional and accessible, allowing for safe and efficient storage, collection and disposal of demolition, construction and operational waste.

O3. To ensure that waste storage and collection facilities are located and designed to protect the health and amenity of occupants, collectors and the natural environment.

O4. To ensure that waste storage and collection facilities are located and designed to be compatible with streetscape character, residential amenity and urban design principles.

E6.2. Waste Management Plan

A Waste Management Plan (WMP) outlines measures to minimise and manage waste generated during demolition, construction and ongoing use of a site or premises. The WMP nominates volume and type of waste and recyclables to be generated, articulates methods for storage and treatment of waste and recyclables on site, describes how residual waste and recyclables will be disposed of and outlines operational procedures for ongoing waste management once the development is complete.

C1. With the exception of low density residential development, a completed waste management plan is to be submitted with development applications involving:

(a) demolition; or

(b) construction of a new building(s); or

(c) a change of use or alterations/additions to existing premises (where the proposal is likely to result in or alter the nature and extent of waste generation).

C2. A waste management plan to be prepared in accordance with relevant Blue Mountains City Council Waste Development Control Plan and the relevant Blue Mountains 'Waste Management Guideline' document.

Note: A waste management plan template is available on Councils website along with guideline documents specific to the type of development proposed.

E6.3. Demolition and construction waste

Explanation

The demolition stage provides great scope for waste minimisation. Applicants are encouraged to consider possible adaptive reuse opportunities of existing buildings/structures and the reuse of materials or parts thereof.

Similarly, significant waste minimisation gains can be secured at construction stage. Proponents should consider waste sensitive construction techniques and management practices and pay particular attention to materials estimates.

Controls

C1. Wherever possible, adaptive reuse opportunities of buildings and structures are to be pursued in preference to demolition.

C2. Reuse and recycling is to be facilitated through careful deconstruction and sorting of building materials.

C3. Where materials have been salvaged through the deconstruction process, opportunities for reuse on the site are to be pursued as a first priority.

C4. An area for the storage of materials for reuse, recycling and disposal is to be provided and comply with the following:

(a) be appropriately located, giving consideration to slope, drainage patterns, the location of stormwater outlets, waterways and vegetation, and access and handling requirements, and

(b) provide separate bins or storage areas designated for materials for reuse, recycling and disposal, and

(c) provide clear labelling and signposting to identify the purpose and content of bins and storage areas, and

(d) implement measures to prevent migration of waste from the site, damage by the elements and odour and health risks. These measures may include bunding, skip covers, asbestos rated enclosures or other appropriate controls.

Note: The location and details of waste storage areas should be clearly identified on plans.

C5. In the planning of building design and construction techniques, recycled building materials are to be prioritised over new building materials.

C6. All residual waste is to be transported and disposed of at a licensed waste management facility.

Note: Blue Mountains City Council operates two waste management facilities: Attunga Road in Blaxland and Woodlands Road in Katoomba. Not all waste types are accepted at each facility. Please refer to Council's website for waste types, charges and terms and conditions.

C7. Records demonstrating lawful disposal of waste are to be retained and kept readily available upon request by relevant authorities.

C8. Materials that have reuse potential or can be recycled are not to go to landfill.

C9. Prior to the demolition of residential properties, owners are to contact Council to have domestic waste bin removed and vacant land charge applied to the site.

E6.4. Operational waste management

E6.4.1. Low density residential development

Explanation

Appropriate design of waste and recyclable storage areas within residential development can provide for ease of use and limited amenity loss associated with the movement and handling of waste for the life of the development. In the Blue Mountains, the majority of housing stock takes the form of low density development and it is therefore important that the design and operation of waste management within homes provides for optimal waste minimisation.

Low density residential development includes single dwellings, secondary dwellings, semi-detached dwellings, dual occupancy and housing for seniors and people with a disability (for developments up to 5 dwellings).

Note: Council does not support the use of private waste collection for this development type.

Controls

C1. The location and design of waste and recycling storage areas are to:

(a) be located behind the building line and not visible from the street, and

(b) avoid noise and odour impacts to maintain the amenity of the adjoining properties, and

(c) ensure the distance of travel between the storage location and the designated collection point is minimised and permits unobstructed accessible resident access to place bins kerbside, and

(d) be on a hardstand area that allows sufficient access to, and operation of, bins and can accommodate Councils full bin allocation, and

(e) ensure on-site infrastructure is provided in accordance with the Blue Mountains *'Residential Waste Management Guideline (including Subdivisions)'* document.

C2. Provision to be made for sufficient space within the kitchen (or alternate location within the dwelling) for the interim storage of waste, organic material and recyclables.

C3. The provision of composting areas is encouraged. These are to be within designated areas that will not impact on the amenity of adjoining properties.

C4. The nominated kerbside collection point to not impede pedestrian traffic and safety and specifications demonstrated in accordance with the Blue Mountains '*Residential Waste Management Guideline (including Subdivisions)*' document.

E6.4.2. Multi dwelling housing

Waste and recycling storage areas within multi dwelling housing developments can affect residential amenity and the safety of both residents and collection contractors. It is important that these areas are integrated within the built form of the development and designed to enhance the overall development.

Note: Council does not support the use of private waste collection for this development type.

Controls

C1. This section applies to 'multi dwelling housing' and housing for seniors and people with a disability as defined in the Blue Mountains LEP 2015.

C2. For developments comprising up to 5 dwellings, please refer to the controls applying to 'low density residential development' (E6.4.1) unless thecharacteristics of the site will restrict or impeded safe access for residents or collection contractors.

C3. MA communal on-site waste storage area must be provided for residential developments in the following circumstances:

(a) Contain 6 or more dwellings; or

(b) Include 'mixed use developments', defined in accordance with the Blue Mountains LEP 2015; or

(c) Where the number of bins would not fit comfortably along the development street frontage or where the placement on the nature strip would have a detrimental effect on the residential amenity; or

(d) Where the characteristics of the site inhibit the provision of a safe and efficient waste collection service; and

(e) In accordance with the provisions outlined within the Blue Mountains *'Multi Dwelling Waste Management Guideline' document.*

C4. A communal on-site waste storage area to be provided and must be of sufficient size to accommodate the full bin allocation associated with the development. This is to be achieved through the provision of a designated communal on-site waste storage area which:

(a) Provides direct and accessible access for the occupants of the development, and

(b) Provides safe and unobstructed access to transfer bins from the storage area to the collection point, and

(c) Does not impact the amenity of the occupants within and adjoining the development in relation to visual, noise and odour, and

(d) Does not interfere with the car parking (on or off street), driveways and footpaths, and

(e) Councils standard waste collection vehicle can access the designated collection point if required to undertake on-site collection to permit a safe and efficient waste collection service, and

(f) Complies with the Blue Mountains *'Multi Dwellings Waste Management Guideline'*.

C5. Where the communal on-site waste storage area is enclosed/secured, and Council is required to access bins under a wheel-out wheel-back arrangement, a locking mechanism to be provided in accordance with Councils specifications. The installation of the lock and provision of keys to be provided at the developer's expense. Specifications of Councils lock system will be provided upon request to Councils Waste and Sustainability Department

C6. The development is to provide an integrated on-site bulky collection area within the development. This is to be achieved through the provision of a designated communal on-site bulky waste storage area which:

(a) Provides direct and accessible access for the occupants of the development, and

(b) Provides safe and unobstructed access for the transfer of bulky items for residential dwellings to the collection area, and

(c) Is located close to the on-site waste storage area, and

(d) Does not impact the amenity of the occupants within and adjoining the development in relation to visual, noise and odour, and

(e) Designed in accordance with the Blue Mountains '*Multi Dwellings Waste Management Guideline*' document.

E6.4.3. Residential Flat Buildings

On-site waste collection areas integrated within residential flat buildings can enhance urban design principles, increase the developments amenity and facilitate the provision of a safe and efficient waste collection service for residents and collection contractors.

Note: Council does not support the use of private waste collection for this development type.

Controls

C1. This section applies to 'residential flat building' as defined in the Blue Mountains LEP 2015.

C2. The development to provide an integrated on-site waste storage area. This is to be achieved through the provision of the following infrastructure:

(a) The room to be integrated wholly within the buildings ground floor. Internal direct and accessible access is required for residents from the residential corridor, and

(b) The room to provide a separate unobstructed external access to permit scheduled servicing by the designated waste collection contractors. If a wheel-out wheel-back service is provided, the locking mechanism is to be provided in accordance with Councils specifications. The installation of the lock and provision of keys to be provided at the developer's expense, and

(c) The room is to provide light, ventilation, wash facilities and drainage in accordance with the Building Code of Australia and Australian Standard provisions, and

(d) An unobstructed internal height clearance of 2.6m to be provided to permit unobstructed access for residents and collection contractors free from utilities and service infrastructure, and

(e) On-site infrastructure to be provided in accordance with the Blue Mountains 'Residential Flat Building Waste Management Guideline' document.

C3. The development is to provide an integrated on-site bulky collection room within the buildings ground floor in accordance with the provisions outline in E6.4.3 (C2). Additional provisions to be incorporated into the rooms design include:

(a) The room to be located adjacent to the integrated on-site waste storage room, and

(b) On-site Bulky Collection infrastructure to be provided in accordance with the Blue Mountains 'Residential Flat Building Waste Management Guideline' document.

C4. The following kerbside collection configuration criteria applies to buildings up to three storeys:

(a) Where Council determines that the site characteristics allow a kerbside collection, utilising Council's standard waste collection may be proposed.

(b) A loading zone restriction (no parking – waste and removalist vehicles excepted) is to be implemented along the developments frontage to permit the schedule loading of Councils standard waste collection vehicle. The restriction to be placed on the designated collection days determined by Council. This is to be approved by Councils Local Traffic Committee prior to implementation and installed at the developers' expense.

(c) On-site infrastructure to be provided in accordance with the Blue Mountains '*Residential Flat Building Waste Management Guideline' document.*

C5. The following collection configuration criteria applies to buildings of four of more storeys:

(a) Adequate and safe on-site access must be provided for Councils standard waste collection vehicle.

(b) A chute system to be installed in accordance with E6.4.3

(c) The route must be designed to permit Councils standard waste collection vehicle to enter and exit the site in a forward direction with limited or no need to reverse

(d) The route of travel, height clearances, ramp grades, swept path models and supporting on-site infrastructure to be d e s i g n e d and comply with AS2890.2 for a Heavy Rigid Vehicle (HRV).

(e) The designated waste collection loading bay to be clearly nominated on the developments submitted architectural plans. Access to be demonstrated by supporting swept path models with 500mm clearances provided from all on-site infrastructure during the vehicle's ingress/egress maneouvres.

(f) Where on-site waste collection is proposed, the on-site waste storage area and bulky goods collection rooms to be located adjacent to the on-site loading bay.

(g) To permit a safe and efficient collection service, a Deed of Agreement (DoA) will need to be made with Council. Contact Council's Waste and Sustainability Department. In preparation of the agreement, a hazard assessment will be undertaken by Council prior to formalisation of the agreement.

(h) On-site infrastructure to be provided in accordance with the Blue Mountains *'Residential Flat Building Waste Management Guideline'*.

C6. The development is to incorporate a single chute system for buildings of four of more storeys. The chute system and on-site collection configuration to incorporate the following:

(a) A single chute inlet for Councils general waste stream to be provided on each residential level. The inlets to be located within close proximity to the central elevator core

(b) The chute inlets to be located within cupboards, with a maximum depth of 150mm and incorporate the following; self-closing sealed doors, mechanical ventilation, waterproofing and permit accessible resident access

(c) A waste chute room to be provided within the basement to collect the general waste from the single chute system. The room to provide light, ventilation, wash facilities and drainage in accordance with the Building Code of Australia and Australian Standard provisions.

(d) The single chute system be of sufficient size to accommodate a linear or circular carousel system and permit adequate services clearances. The chute single chute system, chute room and supporting infrastructure is to be designed in accordance with Councils '*Residential Flat Buildings Waste Management Guideline'*.

(e) A bin tug device to be provided to transport the bins from the waste chute room to the designated on-site waste loading bay/ collection point.

(f) Adjacent to the chute inlet on each residential level, a bin cupboard to be provided large enough to accommodate a minimum of 1x 240L recycling bin. The cupboard to incorporate; self-closing sealed doors, mechanical ventilation, waterproofing and permit accessible resident access

(g) A suitable system to be provided to transport the 240L recycling bins located within the bin cupboards on each residential level to the designated on-site waste loading bay/ collection point.

C7. Council may review alternative and innovative on-site waste management systems for high density developments which deliver sound urban design and environmental outcomes for the development and wider community. The applicant is encouraged to discuss the innovative solutions with Councils Waste and Sustainability Department and during scheduled Council Pre-lodgment meetings.

(a) Alternative solutions to be reviewed in accordance with the provisions outlined within the Blue Mountains 'Residential Flat Building Waste Management Guideline' document.

C8. Agents of the owners corporation are to take responsibility for the management of waste and recyclable materials generated within the site. Arrangements are to be in place in regards to the management, maintenance and cleaning of all waste/recycling management facilities.

E6.4.4. Industrial and Commercial

Industrial and commercial developments provide opportunities for innovative waste minimisation technologies, resource recovery practices and integrated infrastructure configurations.

Note: Council supports the use of private waste collection for this development type.

Controls

C1. The term 'commercial' is defined in the Blue Mountains LEP 2015.

C2. The term 'industrial' is defined in the Blue Mountains LEP 2015.

C3. The development is to provide designated on-site waste collection room/s integrated wholly within the developments built form to accommodate all waste streams generated for the site. The room/s and supporting infrastructure to be designed in accordance with the Blue Mountains *'Industrial, Commercial and Mixed-Use Waste Management Guideline'* document provisions.

C4. Each tenancy to keep written records of the collection contractor engaged for the scheduled collection and disposal of the waste streams generated from the site. The collection contractor to be licensed for the safe and efficient collection of each waste stream.

C5. A Plan of Operations to be submitted accompanying the development proposal, outlining how waste will be managed on-site. The plan to be provided in accordance with Blue Mountains '*Industrial, Commercial and Mixed-Use Waste Management Guideline'*.

C6. The waste collection room to provide separate bin infrastructure for each waste stream produced. Standard and consistent signage to be clearly displayed outlining each waste steam on-site.

C7. Collection to be undertaken at times to minimise the adverse impacts upon residential amenity, pedestrian and vehicle movements.

C8. Provide sufficient space for waste collection infrastructure within each individual tenancy, room, communal area and food preparation area within the development for the interim storage of all waste produced on-site.

C9. Premises that discharge trade waste are only permitted to do so following the attainment of a written agreement from Sydney Water. A copy of the agreement to be accompanied with the development application.

C10. Premises that generates putrescible waste (seafood, meat, poultry, vegetables and organic material etc) are to have the waste stream/s collected daily or items stored within a dedicated on-site refrigerated waste storage/collection area.

C11. The storage and disposal of liquid waste such as oils and chemicals to comply with the provisions outlined within the *'Protection of the Environment Operations Act 1997'*.

C12. Vehicles proposed to service the development to incorporate the following:

(a) Adequate and safe on-site access must be provided for the proposed waste collection vehicle

(b) The route must be designed to permit the waste collection vehicle to enter and exit the site in a forward direction with limited or no need to reverse.

(c) The route of travel, height clearances, ramp grades, swept path models and supporting on-site infrastructure to be designed and comply with AS2890.2 Parking Facilities: Off Street Commercial Facilities for a Heavy Rigid Vehicle (HRV).

(d) The designated on-site waste collection loading bay to be clearly nominated on the developments submitted architectural plans. Access to be demonstrated by supporting swept path models with 500mm clearances provided from all on-site infrastructure during the vehicles ingress/egress maneouvres.

(e) The on-site waste storage/collection area/s to be located adjacent to the on-site loading bay.

C13. Council may review alternative and innovative on-site waste management systems for industrial, commercial and mixed-use developments which deliver sound urban design and environmental outcomes for the development and wider community. The applicant is encouraged to discuss the innovative solutions with Councils Waste and Sustainability Department and during scheduled Council pre-lodgment meetings.

(a) Alternative solutions will be reviewed in accordance with the Blue Mountains '*Industrial, Commercial and Mixed-Use Waste Management Guideline*' document provisions.

E6.4.5. Mixed Use Developments

Where both residential and commercial uses occur on a single lot, integrated on-site waste management provisions are required to permit a safe and efficient waste collections service the various uses proposed.

Controls

C1. The term 'mixed-use' is defined in the Blue Mountains LEP 2015

C2. The controls outlined in Part E6.4.3 apply to the residential component of the mixed-use development

C3. The controls outlined in Part E6.4.4 apply to the non-residential component of the mixed-use development.

C4. The integrated on-site waste collection areas for residential and commercial waste streams to be stored within separate, enclosed and locked storage/collection rooms.



PART E7
CONTAMINATION

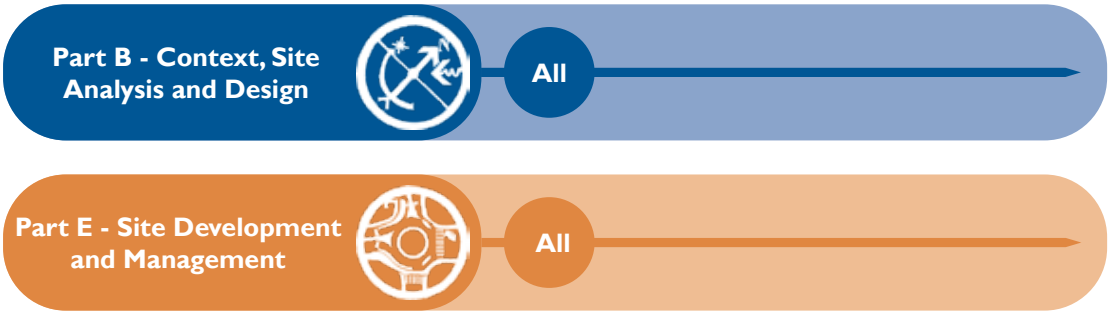


Introduction

Land contamination is most often the result of past or present land uses. It can arise from activities that took place on or adjacent to a site and be the result of improper chemical handling or disposal practices or accidental spillages or leakages of chemicals during manufacturing or storage. Activities not directly related to the site may also cause contamination. For example, diffuse sources such as polluted groundwater migrating under a site or dust settling out from industrial emissions.

When carrying out planning functions under the *Environmental Planning and Assessment Act 1979* (EP&A Act), a consent authority must consider the possibility that land may be contaminated and as such may pose a potential risk to health or the environment. Decisions must then be made as to whether the land should be remediated, or use of the land restricted, in order to reduce the risk.

Read in conjunction with:



Relevant legislation:

One or more of the following types of reports may need to accompany a development application:

- *Contaminated Land Management Act 1997 (CLM Act)*
- *State Environmental Planning Policy (Resilience and Hazards) 2021*
- *The Department of Planning's Managing Land Contamination – Planning Guidelines 1998 (Guidelines)*

E7.1. Relationship to other Legislation

Council's *Contaminated and Potentially Contaminated Land Policy* (the Contaminated Lands Policy), adopted 22 August 2000, stipulates when site contamination information is to be submitted with a development application and outlines the Council's decision making process in respect of development proposals on contaminated or potentially contaminated lands. The Contaminated Lands Policy can be accessed online via Council's website.

The Contaminated Lands Policy draws together the provisions and requirements of the following state level legislation and policy:

- *Contaminated Land Management Act 1997* (CLM Act)

  This Act establishes who is responsible for investigating and remediating contaminated land and gives the Environmental Protection Authority (EPA) the powers to order the assessment and remediation of land in some circumstances. It also provides the framework for the use of site auditors and the independent review of assessment reports.

- *State Environmental Planning Policy (Resilience and Hazards) 2021*

  SEPP (Resilience and Hazards) specifies the general situations where approval is required for the remediation of contaminated land and ensures that Council is provided with information about the site contamination and remediation. It seeks to ensure a consistent approach to the management of contaminated land by requiring works to comply with EPA standards and outlines the circumstances under which proposed remedial work constitutes category 1 or 2 remediation, with the former requiring consent from Council.

- *The Department of Planning's Managing Land Contamination – Planning Guidelines 1998* (Guidelines)

  The Guidelines were prepared by the Department of Planning and published in 1998. The Guidelines are to be used in association with SEPP (Resilience and Hazards) and establish best practice for managing land contamination through the planning and development control process. The Guidelines provide information to assist in the investigation of contamination possibilities and detail a decision making process that responds to the information obtained from an investigation.

This package of state legislation and supporting guidelines is cross referenced and the documents work in conjunction with each other. The Contaminated Lands Policy should be read in conjunction with these documents. NSW Legislation can be downloaded from the NSW Legislation website and the Guidelines can be downloaded from the Department of Planning website.

E7.2. Contamination investigation

Both the EP&A Act and SEPP (Resilience and Hazards) require Council to consider the suitability of land for a proposed development. Ultimately, the consent authority needs to be satisfied that a site is suitable for its proposed use or can and will be made suitable.

If contamination is or has the potential to be present, the applicant must investigate the site and provide the consent authority with the information it needs to carry out its planning functions. The appropriate level of investigation will depend on the circumstances and may involve one or more of the stages described below in the site investigation process.

Note: The applicant or person(s) benefiting from the consent is responsible for demonstrating that a site is suitable for the proposed development, in regards to land contamination. The costs of undertaking the necessary investigations are to be borne by the applicant.

Preliminary Investigation

The main objectives of a preliminary investigation are to identify any past or present potentially contaminating activities, provide a preliminary assessment of any site contamination and, if required, provide a basis for a more detailed investigation.

The Contaminated Lands Policy describes the circumstances under which a preliminary investigation will be required to be submitted with a development application. The Policy also contains details and advice regarding the preparation of a preliminary investigation.

If the consent authority is satisfied that a preliminary investigation report concludes that a site is suitable for the proposed use, it will not require any further land contamination investigations to be conducted.

Detailed Investigation

A detailed investigation is only necessary when a preliminary investigation indicates that the land is contaminated or that it is, or was, formally used for an activity listed in *Part E7 - Table 1* of the Guidelines, and a land use change is proposed that has the potential to increase the risk of exposure to contamination.

A detailed investigation will also need to be conducted as part of a remediation proposal. The objectives of a detailed investigation are to define the nature, extent and degree of contamination; to assess potential risk posed by contaminants to health and the environment; and to obtain sufficient information to develop a remedial action plan (RAP), if required.

The Contaminated Lands Policy describes the circumstances under which a detailed investigation will be required to be submitted with a development application. The Policy also contains details and advice regarding the preparation of a detailed investigation.

Part E7 - Table 1: Extract from Guidelines - *Some Activities that may Cause Contamination*

- acid/alkali plant and formulation
- agricultural/horticultural activities
- airports
- asbestos production and disposal
- chemicals manufacture and formulation
- defence works
- drum re-conditioning works
- dry cleaning establishments
- electrical manufacturing (transformers)
- electroplating and heat treatment premises
- engine works
- explosives industry
- gas works
- iron and steel works
- landfill sites
- metal treatment
- mining and extractive industries
- oil production and storage
- paint formulation and manufacture
- pesticide manufacture and formulation
- power stations
- railway yards
- scrap yards
- service stations
- sheep and cattle dips
- smelting and refining
- tanning and associated trades
- waste storage and treatment
- wood preservation

Remedial Action Plan

The objective of a Remedial Action Plan (RAP) is to set objectives and document the process to remediate the site. All development applications for or including site remediation must be accompanied by a RAP prepared by a suitably qualified person in accordance with the Environmental Protection Authority's Guidelines for Consultants Reporting on Contaminated Sites, 1997.

The Contaminated Lands Policy describes the circumstances under which a RAP will be required to be undertaken. The Policy also contains details and advice regarding the preparation of a RAP and the development consent requirements associated with remediation action.

Validation and Monitoring

The objective of validation and monitoring is to demonstrate whether the objectives stated in the RAP and any conditions of development consent have been achieved. SEPP (Resilience and Hazards) requires a notice of completion for all remediation work. Validation is an important prerequisite of this notice. The Contaminated Lands Policy includes details concerning the required content and timing of validation reports.

E7.3. Obtaining contamination information

Council's Property Information System

Council has details of known contaminated and potentially contaminated land in its property information system. This information is compiled usually as a result of a development application which has prompted a contamination investigation and submission of a subsequent report. It should be noted that Councils records are not exhaustive and there may be land that is yet to be identified as contaminated yet has the potential to be contaminated based on historical land uses.

10.7 Planning Certificates

Under Section 10.7 of the EP&A Act a person may request a Planning Certificate from Council containing specific information about the land. A Section 10.7(2) Planning Certificate includes information on prescribed matters arising under the Contaminated Land Management Act 1997. A Section 10.7(5) Planning Certificate will stipulate if Council records indicate if any activities listed in Table 1 of the Guidelines have occurred on the site, and if there is any site investigations held by Council, and/or any notification of remediation, and/or copies of any site audit statement held by Council.

E7.4. Independent auditing

The CLM Act provided for the NSW Site Auditor Scheme. Site Auditors are accredited experts who can provide an independent review of the work of a primary consultant for all types of contaminated sites.

The consent authority may request a site audit (or independent review) to be undertaken at any or all stages of the site investigation process. The site audit is to be carried out by an accredited Site Auditor and the cost borne by the applicant.

Council may require a site audit where it:

- believes on reasonable grounds that the information provided by the proponent is incorrect or incomplete
- wishes to verify the information provided by the proponent adheres to appropriate standards, procedures and guidelines
- does not have the internal resources to conduct its own technical review.

The Contaminated Lands Policy contains further detail regarding the NSW Site Auditor Scheme and the content of a site audit. The NSW Environmental Protection Authority have also prepared Guidelines for the NSW Site Auditor Scheme June 2002, which outline the NSW Site Auditor Scheme, the process of appointing site auditors, and the legal, administrative and technical directions and guidelines for site auditors and the preparation of site audits statements.

PART E8
PUBLIC DOMAIN



Introduction

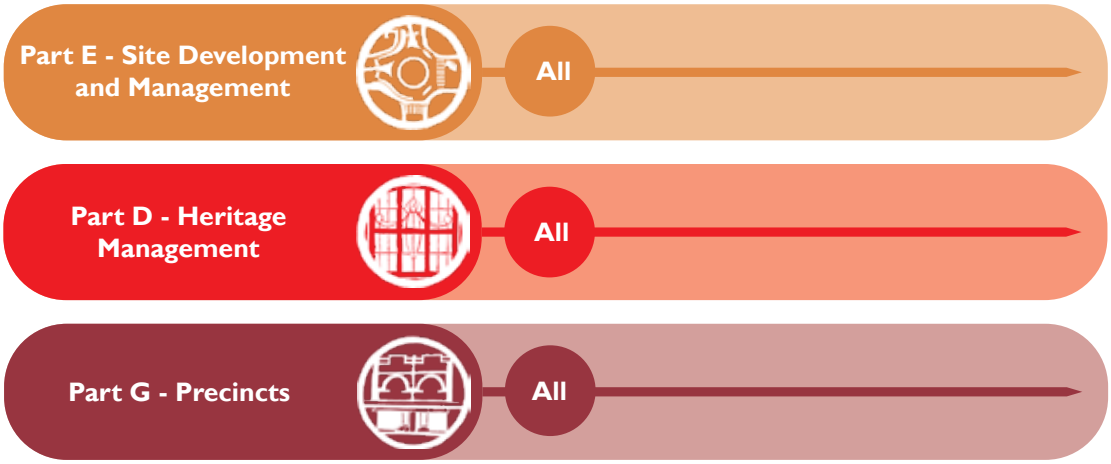
The public domain of the Blue Mountains towns and villages provides the interface between public and private property and acts as a venue for access and social interaction as well as a corridor for essential and non-essential services. When combined with all elements of the setting, the public domain is a key component of the function and identity of the place.

While the public domain is usually Council owned land such as roads, footpaths and parks; those parts of private property that line, or intersect with roads and footpaths, particularly in town and village centres, should be included where accessible by members of the public for a public purpose.

The key principles to be established in the development and management of the public domain are:

- *To enhance and integrate the function, character and quality of the street;*
- *To respect the existing streetscape when building new amongst old - understanding the character of the area and designing to achieve sympathetic new development or alterations;*
- *To maximise the coordination and integration of public land and private development where they intersect;*
- *To ensure that appropriate species are planted to enhance the character, amenity and environmental quality of the street;*
- *To maximise safety and access for all as a considered process of inclusion.*

Read in conjunction with:



Relationship to other legislation and documents:

One or more of the following types of reports may need to accompany a development application:

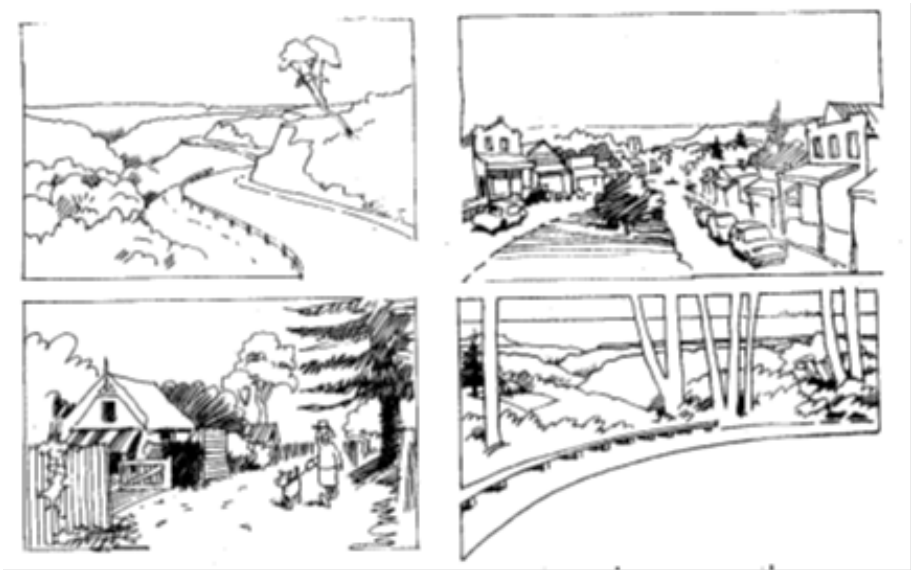
- *The Public Domain Technical Manual*
- *The Street Tree Masterplan*

E8.1. Street Hierarchy

Introduction

The natural topography of the Blue Mountains means that the towns and villages connected by roads and separated by bushland have a particularly distinct character. Roads dip and bend across the topography, and streets open up to famous vistas or are enclosed by canopies of trees and the thickness of native vegetation. Back lanes and scenic drives, suburban roads, formal avenues and the Great Western Highway are all distinctive responses to topography, development, traffic and engineering. This hierarchy of streets adds to the legibility of the Local Government Area as a whole and the individual towns and villages to locals and visitors alike.

The scale of the road to the setting, the character and quality of edge treatments, the design of infrastructure and the layout and materials of footpaths all signal the logic of the local development pattern for residents and visitors.



Part E8 - Figure 1: Distinctive scenic views give the Blue Mountains a unique character of natural and cultural beauty

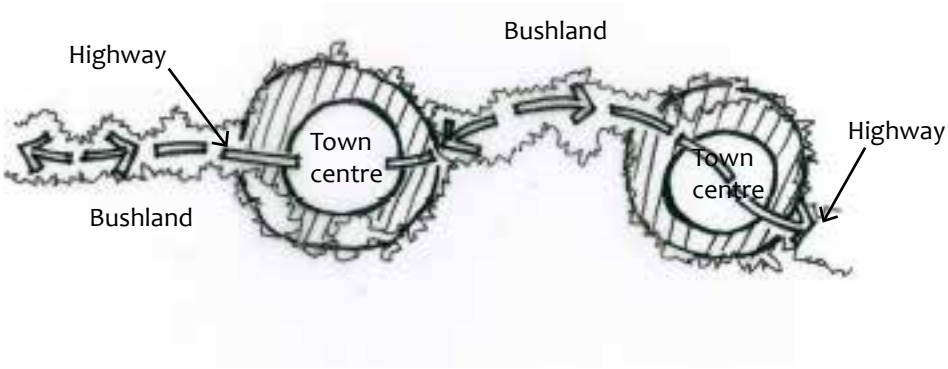
The design of street elements may enhance or devalue the experience for observers - whether town centre, residential back street, or major regional road. The following objectives and controls seek to maintain and enhance this distinctive pattern and hierarchy.

This section applies when work is proposed within the public or private domain on or adjacent to the following road types, regardless of the scale or type of development.

E8.1.1. Great Western Highway

Explanation

The Great Western Highway has been the major route through the Blue Mountains since the early nineteenth century. It has developed multiple layers of character and heritage deserving of considerable respect. Its linear configuration connects a string of towns and villages and increases rapidly in elevation from around 60m above sea level to over 1000. There is a clear progression of separated and distinct towns and villages which are, individually and together, integral to the character and identity of the local government area.



Part E8 - Figure 2: The linear configuration of the Great Western Highway has created a string of separated and distinct towns and villages

All roadwork and maintenance between the roadside kerbs along the Highway is the responsibility of the Roads and Maritime Service and it is recommended that contact is to be made with this agency in advance of lodging any application requiring works in this area. The following controls focus on areas between the back of the kerb and the private property boundary.

Objectives

O1. To maintain the separation of towns and strengthen the bushland character of the land between towns.

O2. To ensure the Great Western Highway retains its historic associations, physical remnants and landscape elements that contribute to its streetscape;

O3. To considerately integrate new development into the historic environment.

O4. To consider the potential impacts upon the scenic and character values of the location.

O5. To continue to landmark the town and village centres with appropriate street tree planting, or the town entry access from the Great Western Highway, as appropriate.

O6. To ensure safe and appropriate landscaping that simultaneously consolidates desired location character, improves pedestrian amenity and maintains open sight lines and safety.

O7. To continue the provision of a continuous pedestrian/cycle path along the Great Western Highway length.

O8. To ensure that associated infrastructure is appropriate to its setting.

O9. To ensure that public art opportunities are considered for inclusion where appropriate.

Controls

C1. Construction works associated with parts of the Great Western Highway that have thickly vegetated roadside are to include rehabilitation of indigenous vegetation of local provenance

Note: Definition of "in town" and "between towns" for the purposes of landscaping and selection of plant material should be guided by the Strategy maps in the current edition of Council's Street Tree Masterplan.

C2. Construction works associated with those parts of the Great Western Highway that are in town areas are to include rehabilitation or new planting of street trees in accordance with Council's Street Tree Masterplan. These works are to include establishment maintenance for any street trees proposed.

C3. Construction work from the back of kerb is to be unobtrusive and compatible with the roadside landscape.

C4. Stormwater management is to be unobtrusive and should incorporate Water Sensitive Urban Design devices such as landscaped swales where possible.

C5. Landscaping in roadside settings should use a combination of groundcovers (maximum height 500mm) and single trunked trees with elevated canopies to ensure open sightlines.

C6. Where development intersects with the shared pedestrian / bicycle way , appropriate transitions and links to this access way in accordance with Council's Public Domain Technical Manual.

E8.1.2. Scenic Drives

Explanation

The Blue Mountains has a number of scenic drives from Lapstone to Bell, developed over the last 100 years. These are documented in the "Greater Blue Mountains Drive" literature and include roads at:

- Mounts Wilson and Irvine
- Blackheath and Megalong Valley
- Katoomba
- Leura
- Wentworth Falls
- Glenbrook



Part E8 - Figure 3: The Jamison Valley from Cliff Drive, Katoomba

Probably the most eminent of these is Cliff Drive at Katoomba. Views range from small tree-framed vistas to grand panoramas. Sometimes a series of views lead to a lookout and the progression of views may be a vital part of the streetscape. Scenic drives are usually long established and can be associated with significant heritage values and social history. Any upgrading, construction, landscaping or adjacent development should be consistent with the setting of these drives.

Objectives

O1. To retain the balance of scale between the road and natural environment on scenic drives.

O2. To ensure scenic drives retain the historic associations, physical remnants and landscape elements that contribute to their character and history.

O3. To ensure that development adjacent to scenic drives considers the potential impacts upon the values of the scenic drives.

O4. To strengthen the character of the land on the edges and between towns through replanting of indigenous species and vegetation rehabilitation.

O5. To sensitively integrate infrastructure such as stormwater drainage through site appropriate measures.

Controls

C1. Construction works associated with major roads and scenic drives that have thickly vegetated roadsides are to include vegetation rehabilitation.

C2. Parking and services are to be unobtrusive and integrated with landscaping;

C3. Construction works associated with scenic drives and lookouts must be low-key and compatible with the natural landscape, including treatments such as:

(a) Planted or grassed swales for stormwater disposal;

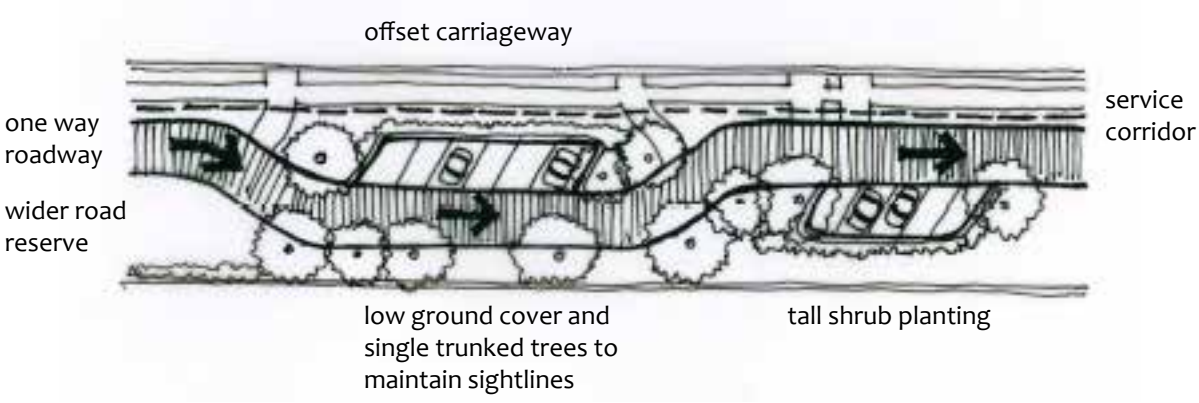
(b) Use of compacted earth or stabilised granite in preference to concrete or unit paving;

(c) Reuse of timber and stone from the site in edging, tracks and steps – refer Public Domain Technical Manual.

C4. Stormwater management devices are to be unobtrusive, and utilise materials and finishes in accordance with the Public Domain Technical Manual.

C5. Any proposed tourist amenities such as toilets, picnic furniture, shelters and playgrounds are to be constructed of natural materials with natural surface finishes, and carefully sited to be unobtrusive and retain natural views.

C6. Rolled kerbs, plantings, grassed swales and offset parking bays or carriageways are to be used in preference to concrete kerbs and guttering where possible.



Part E8 - Figure 4: An example of offset parking and road.

E8.1.3. Town & Village Centre Main Streets

Explanation

Part of the special attraction of Blue Mountains towns is, in many cases, the character of their main streets. These streets perform many functions and must work at a practical level. However they also represent the town's social history, embody its identity to residents and often present a strong town character to visitors. A number of the town centres are protected as heritage conservation areas (reference should be made to Part D Heritage of this DCP) reinforcing the concentration of social and historical significance.

Improvements to pedestrian amenity, appearance, accessibility and safety are seen as ways of revitalising, activating and enhancing the character and vitality of the town and village centres which vary in size and significance from village to district centre.

Objectives

O1. To ensure that development in town and village centres enhances the public domain and is appropriate to the character of its particular setting;

O2. To ensure that development provides a positive interface between public and private realms and that development demonstrates a high level of urban design quality;

O3. To ensure active frontages are provided at main street elevations to enliven the public domain;

O4. To ensure that appropriate materials and furniture are used in publicly accessible areas of town and village centres;

O5. To provide improved amenity, safety and access to town and village centres.

Controls

C1. New development, including alterations and additions to existing buildings is to demonstrate a high level of integration between existing and new work. Where a developed materials palette and design approach is evident in the street, this approach should be repeated. Reference should be made to the Council's Public Domain Technical Manual for materials and finishes.

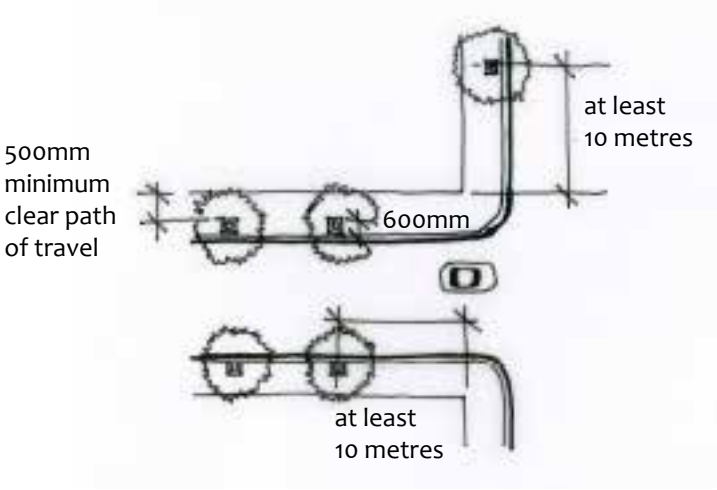
Where no particular materials palette is evident, pavements, furniture and structural elements are to be provided in accordance with the Council's Public Domain Technical Manual.

Note: Consultation with Council's Assets and City Planning Branches should be undertaken prior to the final preparation and lodgement of any application.

C2. Street trees should be provided that are consistent with established themes, and appropriately sized deep soil zones are to be retained for these trees.

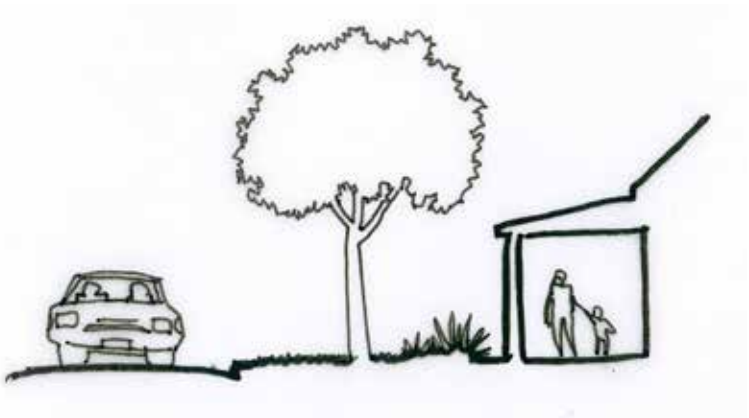
Note: Refer to Part C3 Landscaping of this DCP for information on Deep Soil Zones.

C3. Street trees are to be sited to maintain or improve sightlines and to reduce conflicts between pedestrians and cars.



Part E8 - Figure 5: Position street trees to maintain sightlines

C4. Main Street landscaping is to be simple and robust to minimise maintenance. Combinations of low shrubs or groundcovers to a maximum of 500mm height and street trees which carry their canopy high are preferred to maintain sightlines which are as open as possible.



Part E8 - Figure 6: Landscaping to town centre streets: plant combinations must be selected and arranged to keep open sightlines for both safety of pedestrians and personal security.

C5. Weatherproofing in the form of continuous awnings should be provided to all the main street frontages of existing and new shopfront buildings.

C6. Ensure adequate provision and integration of street drainage.

C7. The principles of Crime Prevention through Environmental Design (CPTED) should be applied to all design in the public domain.

Note: Refer to Part E5 Safety and Security for further information.

E8.1.4. Town Centre Laneways & Through-Site Links

Explanation

Many of the larger town and village shopping centre precincts of the Blue Mountains contain networks of passages and lanes (either external or internal) that allow fine-grain pedestrian access through and around shops, and provide key links to the main street from car parks and residential areas. These can be found in the town centres of Leura, Katoomba, Blackheath, Springwood, Blaxland, Glenbrook, Lawson, Wentworth Falls and Hazelbrook. These laneways offer a different character and experience to the main streets, and can present a legitimate and interesting "back of house" view to the old, often heritage listed Edwardian and Inter-War shopfronts.

Through-site links are encouraged where the opportunity arises to integrate other frontages at the rear of shops with the main street.

The urban design detailing and activation of lanes and links is to conserve and enhance their character and consolidate their contribution to the functioning of the main centre, by improving permeability while also addressing safety and amenity.



Part E8 - Figure 7: Laneways provide a dynamic 'back of house' character and experience, in contrast to the main streets

Objectives

O1. To identify opportunities for maximising through-site and laneway links.

O2. To achieve a high standard of urban design to town centre laneways which maximises safety, security and general amenity.

O3. To increase activation where possible through flexibility in adjacent floor plan and use of existing and new penetrations to laneway frontages.

O4. To maintain the setting of heritage items and of buildings within a heritage conservation area or adjacent to heritage-listed buildings whilst allowing for an appropriate level of adaptation.

O5. To encourage the inclusion of public art or elements of interest where appropriate to generate activity and through-traffic.

Controls

C1. An appropriately qualified and experienced professional such as an architect, landscape architect, or urban designer is to be used to design and detail new development affecting lanes and through-site links;

C2. Views in and out of lanes and through-site links are to be maintained. Short, straight runs linking points of existing high activation are to be prioritised and dead ends avoided;

C3. Lighting to new pedestrian lanes and through-links is to:

(a) Be designed by an appropriate lighting engineer;

(b) Comply with AS/NZS 1158.3.1

(c) Be reviewed by the Council's Asset Branch where the lanes and links are to become a Council asset.

(d) Should replicate adjacent lighting infrastructure.

C4. New lanes and footpaths and any accompanying street furniture is to be constructed in accordance with the Council's Public Domain Technical Manual and Design and Construction Specification. If a developed materials palette is evident, consistency is preferred

C5. Opportunities for artwork should be sought and identified.

E8.1.5. Residential Footpaths

Explanation

Footpaths in the Blue Mountains Local Government Area must retain a high level of functionality while still demonstrating a standard of visual and practical amenity. Whether main roads or quiet residential setting, footpaths need to be accessible, safe, attractive and durable. They are used not only by pedestrians, but in some locations must be shared with cyclists. Footpath design should consider the needs of older residents and those with impaired mobility.

Objectives

O1. To provide a footpath of sufficient width to accommodate pedestrians and where appropriate, shared areas for pedestrians and cyclists;

O2. To ensure footpaths are constructed using common, robust materials with a relatively long durability and which are easily repaired and replicated;

O3. To ensure the retention of soft, pervious and landscaped areas, particularly in relation to street trees, that contributes to landscape setting, residential amenity and catchment health.

Controls

C1. The Public Domain Technical Manual is to be used to guide the dimensions, materials and detailing of footpaths.

C2. The setting out of footpaths is to have regard to the retention of existing trees, where trees are in good health.

C3. Avoid planting shrubs which hinder open sightlines. Low groundcovers and single trunked trees with elevated canopies are preferred.

E8.2. Improving the Public Domain in Town Centres

Explanation

The Council's guiding strategic plan for the City, *Sustainable Blue Mountains 2025: Our City Our Future*, seeks to strengthen liveability, vibrancy and safety in all town and village centres. Other important qualities of town and village centres listed in this document are retention of character, accessibility, sustainability, vitality and diversity. These qualities are important for both residents and visitors alike. This section aims to provide standards which support these development directions.

Note: In addition to complying with the provisions of this DCP, development in the public domain of town centres must also comply with the principles and provisions of the NSW Disability Inclusion Act 2014.



Part E8 - Figure 8: Lawson Town Centre

E8.2.1. Footpath Awnings & Balconies

Explanation

Awnings and weather protection elements increases the suitability and amenity of public footpaths by protecting pedestrians from all weather conditions. They encourage pedestrian activity along streets and in conjunction with active edges such as retail frontages (cafés etc.), support and enhance the vibrancy of the local area. Awnings also provide architectural continuity and contribute to the streetscape.

Objectives

O1. To provide shelter from wind, rain and sun for streets where most pedestrian activity occurs.

O2. To provide a visually integrated streetscape.

O3. To ensure that street awnings and balconies meet appropriate design and safety standards.

C1. Awnings are to be provided at specific locations identified within key precincts. Refer to Part G of the DCP.

Note: Precincts are identified on the LEP 2015 Built Character Map.

C2. Awnings should be an integral component of new developments (including alterations and additions) and where appropriate, stepped to accommodate sloping streets.

C3. Stepped awnings are to be detailed to provide continuous weather protection.

C4. Awning design is to match building facades and be complementary to those of adjoining buildings.

C5. Awnings are to be cantilevered from the face of the building or suspended. The installation of support posts within the public area is not supported.

C6. Awning dimensions should generally be:

(a) setback from the face of the kerb a minimum of 600mm to allow for clearance of street furniture including street trees, and

(b) a minimum soffit height of 3.2m and maximum of 4m, and

(c) stepped for design articulation or to accommodate sloping streets. These are to be integral with the building design and should not exceed 700mm; and

(d) low profile, with slim vertical fascias or eaves generally not to exceed a height of 300mm height for new awnings. Where existing awnings are being replaced, the existing fascia height may be maintained.

C7. For corner sites, awnings are to wrap around the building up to 6m along the secondary street frontage.

C8. The provision of under awning lighting (where appropriate) should be recessed into the soffit of the awning or mounted to the building façade to facilitate pedestrian movement at night and improve public safety.

C9. Stormwater drainage from the awning is to be drained to the footpath level with a downpipe recessed into the face of the building, and then piped under the footpath to the face of the kerb.

C10. Where the awning is to encroach over the road reserve, including the footpath, a separate approval to erect the awning over the road reserve is to be obtained under the *Roads Act 1993*.

C11. This part applies to any development that involves:

(a) a building with an existing awning or balcony over a public footpath; and

(b) the requirement for a construction certificate.

Council will require a report prepared by a structural engineer regarding the condition of the existing awning/balcony. The report should detail any works required to be undertaken to ensure that the awning/balcony is structurally sound. The report is to be submitted for assessment as part of the development application.

Where work is required, Council will condition the work to be completed prior to the issue of any Occupation Certificate.

Note: Buildings that are heritage items or are within heritage conservation areas must also comply with D9.7 Traditional shopfront buildings.

E8.2.2. Street Trees

Explanation

The planting, establishment and management of street trees is undertaken by the Council to achieve a number of objectives fundamental to the character and amenity of the Local Government Area as a whole.

The outline of these objectives as well as guidance on planting, species selection and ongoing management can be found in the Council's Street Tree Masterplan. The urban conditions of town centres provide difficult settings for street trees. Proper planning, design and establishment maintenance are required to grow viable trees of appropriate size and form in town centre locations. Species selection is particularly important to consolidate town character, provide a high level of amenity and reduce or avoid the hazards that trees can present if not appropriately selected, installed and managed.



Part E8 - Figure 9: street trees can contribute to an attractive urban environment

Objectives

O1. To ensure the viability of new plantings is maximised through careful placement and preparation of planting pits, and minimising conflicts with utilities.

O2. Consolidate and concentrate town and village character using existing themes in relation to tree species, in accordance with the Street Tree Masterplan.

O3. To ensure that the placement of street trees limits hazard and potential adverse impacts on sightlines

Controls

C1. Species selection and planting location of street trees is to be undertaken in accordance with the relevant provisions of the Street Tree Masterplan and the Public Domain Technical Manual.

C2. Planning, designing and detailing the installation of Street trees is to be in accordance with the Public Domain Technical Manual.

E8.2.3. Street Furniture

Explanation

Street furniture includes light poles, signage, seating, bus shelters, garbage bins, planter boxes and balustrades. Where development intersects with the public domain within town centre main streets, careful consideration is to be given to impacts on existing street furniture as well as to any furniture proposed as part of the development.

Early consultation will be required with Council's Assets branch and Urban Designer in relation to street furniture, either existing or proposed. Reference should also be made to the Public Domain Technical Manual.

The range of street furniture listed in Council's Technical Manual has been carefully selected to be robust, easily maintained with accessible spare parts, and carefully coordinated to balance a contained product range with the need for Blue Mountains towns and villages to display their individual identity.

Objectives

O1. Placement and spacing of furniture must relate to functional street requirements and be coordinated with existing street furniture.

O2. Street furniture elements should be set out as part of an integrated streetscape design scheme.

Controls

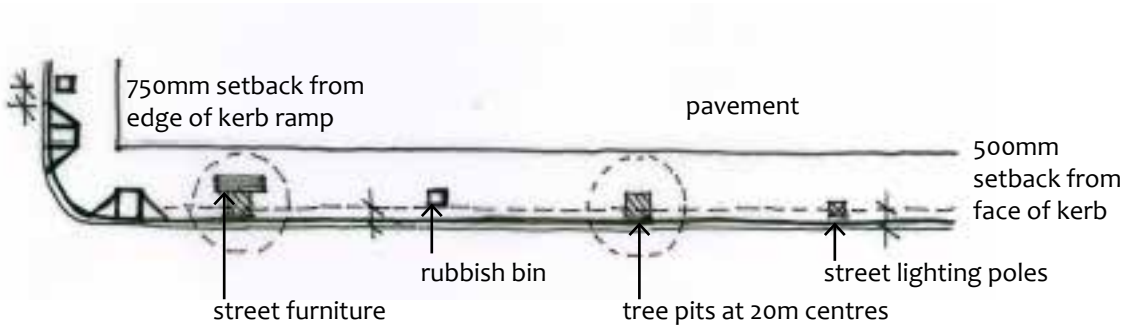
C1. Where new development is likely to impact on existing street furniture and require relocation, this is to be undertaken at the expense of the applicant and in consultation with Council.

C2. Any street furniture proposed as part of a development is to be selected from the range specified in the Public Domain Technical Manual and match any existing street furniture.

C3. Street furniture is to be located generally in accordance with the following:

(a) Light poles and signage are to have a minimum of 500mm clearance from the face of kerb; and

(b) Kerbside furniture elements are to be set back from the face of the kerb by 750mm and located so as to provide for a minimum 2m clear path of travel for pedestrians.



Part E8 - Figure 10: Positioning street furniture

E8.3. Cycling Networks

Explanation

One of the core infrastructure plans for the Blue Mountains Local Government Area is the creation of safe and accessible pathways of travel. Consistent with this is the development of the *Blue Mountains Bike Plan 2020* (Bike Plan).

The following objectives and controls are intended to guide development which includes or connects to local path infrastructure, and ensure that such development is consistent with the Bike Plan objectives, and facilitates the use of bicycles across the local government area.

Objectives

O1. To ensure new paths are consistent with the objectives in the *Blue Mountains Bike Plan 2020.*

O2. To ensure any new bicycle pathways provided as part of a development are appropriately constructed from robust materials, which are durable and easily repaired;

O3. To ensure secure and convenient bicycle parking, with appropriate bicycle infrastructure, is available and conveniently located within the Blue Mountains.

Controls

C1. All new bicycle paths and connections to these paths are to be consistent with the "Shared Standard Footpath" detail in the Public Domain Technical Manual as a minimum standard.

C2. New development is to include secure and convenient bicycle parking, including bicycle racks and the like, as part of the required parking provision for that development.

Note: Reference is to be made to Part E2 Traffic, Parking and Access for bicycle parking rates.

C3. Where bicycle racks and the like are proposed on public land as part of a development proposal, these are to be located and mounted in accordance with the provisions outlined in the Public Domain Technical Manual.

